REGULAR MEETING OF THE CARNATION CITY COUNCIL AGENDA

Kim Lisk, Mayor *Jim Ribail, Deputy Mayor* *Adair Hawkins*
Tim Harris *Dustin Green*

DATE: APRIL 19, 2022
TIME: 7:00 P.M.
JOIN ONLINE: bit.ly/220419cc
OR CALL:
+1 509-724-0556 United States, Spokane
Phone Conference ID: 825 161 659#

1. CALL TO ORDER: Mayor Lisk
2. PLEDGE OF ALLEGIANCE: Councilman Hawkins
3. ROLL CALL: Acting City Clerk Ana Cortez
4. APPROVAL OF AGENDA: Mayor & Council

5. CONSENT AGENDA
   a) Minutes. Pending for May's packet: March 15, 2022, April 5, 2022, April 14, 2022, and April 19, 2022.

   Claims and Payroll-

   b) Claim - Approval of Claims for April 4, 2022 in the amount of $334.99.
   c) Claims - Approval of Claims for April 7, 2022 in the amount of $173,431.44.
   d) Claims – Approval of Claims for April 19, 2022 in the amount of 108,954.14.

6. COUNCIL REPORTS AND REQUESTS: Mayor, City Council & Council Committees.

7. STAFF REPORTS

   City Manager, Financial Consultant, Customer Service, Planning and Public Works.

8. PUBLIC COMMENT & REQUESTS: public comment on meeting items or other issues of note or concern.

9. AFFILIATE REPORTS/PRESENTATIONS
   a) Chamber of Commerce
   b) Ricardo Noguera: ARPA Grant Administrative Report.

10. AGENDA BILLS:

    a) AB22-24. Ordinance**.** Amending Title 15 CMC by the addition of a new Chapter 15.45 Temporary Use Regulations thereto; adopting new regulations and relocating and recodifying various pre-existing regulations governing construction trailers, mobile food services, temporary dwellings and other temporary land uses and structures.
    b) AB22-25. Ordinance**.** Amending Chapter 15.110 CMC Marijuana Related Uses; repealing and replacing the City's regulations governing medical cannabis collective gardens with new standards for marijuana cooperatives in order to reflect recent State law changes; prohibiting such uses in all zoning districts of the City; and authorizing State-licensed marijuana retailers to locate within the City's Agri-tourism and Industries (AGI), Horticultural Commercial (HC), Light Industrial/Manufacturing (LI/M), and Service Commercial (SC) zones.
    c) AB22-26. Motion. Authorizing the City Manager to negotiate and execute a Consultant Agreement with AHBL, Inc., in an amount not to exceed $300,000 for development review and Comprehensive Plan periodic update services through 2024.
    d) AB22-27. Resolution. City Council determines public use for Property (APN 865830-2030).
    e) AB22-28. Ordinance. Authorizing Condemnation of Property (APN 865830-2030).

11. DISCUSSION ITEMS
    a) Tolt Avenue SR 203 Update
    b) The Triangle
    c) Residential Development Update
        a. John Day Homes Projects
        b. 2 Generations Development
        c. Tolt Villas: Sidewalk
        d. Commercial and Rutherford

12. ADDITONAL BUSINESS & DISCUSSION ITEMS
    a) Future agendas

13. ADJOURNMENT

5. CONSENT AGENDA

(B) CLAIMS FOR 4/4/22

CITY OF CARNATION

CLAIMS VOUCHER
CERTIFICATION AND APPROVAL

We, the undersigned members of the Carnation City Council, do hereby attest that claims in the amount of **$334.99,** have been approved for payment by motion of the Carnation City Council at a regular meeting this **19th day of April, 2022.**

FUND#	FUND NAME	PURPOSE	AMOUNT	
001	GENERAL	ACCOUNTS PAYABLE	$	-
101	STREET OPS	Apr-22	$	83.75
106	CEMETERY		$	-
107	EQUIPMENT REPLACEMENT		$	-
108	PARK DEVELOPMENT		$	-
109	TRAFFIC IMPACT FEE		$	-
201	LTGO BOND REDEMPTION FUND		$	-
301	CAPITAL STREET IMPROVEMENT		$	-
302	CAPITAL FACILITIES		$	-
401	WATERWORKS OPERATING		$	167.50
402	WATER CAPITAL REPLACEMENT		$	-
404	WATER BOND REDEMPTION		$	-
406	LANDFILL ASSURANCE		$	83.74
407	SEWER DEBT SERVICE		$	-
408	SEWER CAPITAL PROJECTS		$	-
409	STORM WATER OPS		$	-
633	TRUST		$	-
		TOTAL CLAIMS	$	334.99

Kim Lisk, Mayor
Finance & Operations Committee

Invoices, Register & Voucher Review by:

Maria Pena — 4/13/2022
Finance/City Manager/Council — Date

Tim Harris, Councilmember
Finance & Operations Committee

Pursuant to CMC 3.12.030, the blanket voucher is to be signed by at least two members of the council committee after council approval.

Transaction Activity

Reference	Vendor	Period	Amount	Number
Invoice				
March 2022 Utility Bills	**Carnation Post Office ~ Utility Bills**	**2022 - Apr - Apr 4 Utility Billing**		**36876**
		PO Check		
101-000-542-40-42-01	Communications ~ Postage		$83.75	
401-000-534-10-42-01	Communications/Postage		$83.75	
401-000-535-10-42-01	Communications: Postage		$83.75	
406-000-553-70-42-01	Postage		$83.74	
			$334.99	
		Total Invoice	**$334.99**	
		Grand Total	**$334.99**	

Fund Transaction Summary

Transaction Type: Invoice
Fiscal: 2022 - Apr - Apr 4 Utility Billing PO Check

Fund Number	Description	Amount
101	Street Fund	$83.75
401	Water & Sewer Utility Fund	$167.50
406	Landfill Financial Assurance	$83.74
	Count: 3	**$334.99**

5. CONSENT AGENDA

(C) CLAIMS FOR 4/7/22

CITY OF CARNATION

CLAIMS VOUCHER
CERTIFICATION AND APPROVAL

We, the undersigned members of the Carnation City Council, do hereby attest that claims check numbers **36834** through **36836,** in the amount of 173,431.44**,** have been approved for payment by motion of the Carnation City Council at a regular meeting this 19th **day of April, 2022.**

FUND#	FUND NAME	PURPOSE	AMOUNT
001	GENERAL	ACCOUNTS PAYABLE	$ 1,388.75
101	STREET OPS	Feb-22	$ 1,301.77
106	CEMETERY		$ 46.35
107	EQUIPMENT REPLACEMENT		
108	PARK DEVELOPMENT		$ -
109	TRAFFIC IMPACT FEE		$ -
201	LTGO BOND REDEMPTION FUND		$ -
301	CAPITAL STREET IMPROVEMENT		
302	CAPITAL FACILITIES		
401	WATERWORKS OPERATING		$ 170,694.57
402	WATER CAPITAL REPLACEMENT		
404	WATER BOND REDEMPTION		$ -
406	LANDFILL ASSURANCE		
407	SEWER DEBT SERVICE		$ -
408	SEWER CAPITAL PROJECTS		
409	STORM WATER OPS		
633	TRUST		
		TOTAL CLAIMS	$ 173,431.44

Kim Lisk, Mayor
Finance & Operations Committee

Tim Harris, Councilmember
Finance & Operations Committee

Invoices, Register & Voucher Review by:

Finance/City Manager/Council Date / /

Pursuant to CMC 3.12.030, the blanket voucher is to be signed by at least two members of the council committee after council approval.

Transaction Activity

Reference	Vendor	Period	Amount	Number
Invoice				
30032727	**KC Finance - Sewer Facility Ops**	**2022 - Apr - April 7 Claims**		**36836**
	Dec 21			
401-000-535-60-41-20	KC Facility Operating Costs		$54,428.13 Dec	
			$54,428.13	
30033384	**KC Finance - Sewer Facility Ops**	**2022 - Apr - April 7 Claims**		**36836**
	Feb 22			
401-000-535-60-41-20	KC Facility Operating Costs		$57,054.66 Feb 22	
			$57,054.66	
30034204	**KC Finance - Sewer Facility Ops**	**2022 - Apr - April 7 Claims**		**36836**
	April 22			
401-000-535-60-41-20	KC Facility Operating Costs		$57,842.98 April 22	
			$57,842.98	
31293401	**GreatAmerica Financial Svcs**	**2022 - Apr - April 7 Claims**		**36835**
	Postage meter			
001-000-518-10-45-01	Postage Meter		$192.55	
001-000-558-50-45-01	Postage Meter Lease		$129.79	
101-000-543-30-45-01	Postage Meter Lease		$51.35	
401-000-534-10-45-01	Postage Meter Lease		$169.72	
401-000-535-10-45-02	Postage Meter Lease		$169.72	
			$713.13	
Feb-March 2022 Statement	**Bank of America**	**2022 - Apr - April 7 Claims**		**36834**
001-000-511-60-41-10	Facilitated Retreats		($200.00)	
001-000-511-70-31-00	Office/Operating Supplies		$20.62	
001-000-513-10-64-00	Equipment		($99.44) credit for returned item	
001-000-514-20-41-02	Annual Software Maintenance		$100.83 microsoft	
001-000-514-20-49-01	Training/Tuition		$55.00	
001-000-514-20-49-01	Training/Tuition		$140.00	
001-000-514-30-41-00	Professional Services		$85.70	
001-000-514-30-41-00	Professional Services		$85.70	
001-000-518-10-31-00	Office/Operating Supplies		$209.82 Dog waste Depot	
001-000-518-10-31-00	Office/Operating Supplies		$37.51	
001-000-518-10-47-05	Utilites: Combined Water/Sewer		$25.15	

Reference	Vendor	Period	Amount	Remarks
Invoice				
Feb-March 2022 Statement	**Bank of America**	**2022 - Apr - April 7 Claims**		**36834**
001-000-518-10-47-05	Utilites: Combined Water/Sewer		$70.95	
001-000-518-10-64-02	Computer Hardware & Software		$165.12	Adobe
001-000-558-40-49-00	Training/Tuition		$94.00	JurassicParliament
001-000-558-50-47-05	Utilities: Combined Water/Sewer		$40.71	
001-000-576-80-47-05	Utilities: Water/Sewer Combine		$26.93	
001-000-576-80-47-05	Utilities: Water/Sewer Combine		$58.26	
001-000-576-80-47-05	Utilities: Water/Sewer Combine		$41.85	
001-000-576-80-47-05	Utilities: Water/Sewer Combine		$53.85	
001-000-576-80-47-05	Utilities: Water/Sewer Combine		$53.85	
101-000-542-30-00-00	ROADWAY PRESERVATION		$1,016.83	
101-000-542-30-00-00	ROADWAY PRESERVATION		$19.56	
101-000-542-40-47-05	Utilities: Combined Water/Sewer		$10.36	
101-000-542-40-47-05	Utilities: Combined Water/Sewer		$6.98	
101-000-543-10-41-09	Annual Software Maintenance		$100.83	microsoft
101-000-543-30-31-00	Office/Operating Supplies		$37.50	
101-000-543-50-47-05	Utilities: Combined Water/Sewer		$44.40	
101-000-543-50-47-05	Utilities: Combined Water/Sewer		$13.96	
106-000-536-20-47-01	Utilities: Water		$46.35	
401-000-514-30-41-34	Utility Lien Recording Fee ~ Water		$20.50	
401-000-514-30-41-35	Utility Lien Recording Fee ~ Sewer		$20.50	
401-000-534-10-31-00	Office/Operating Supplies		$9.39	
401-000-534-10-41-13	Annual Software Maintenance		$100.83	microsoft
401-000-534-10-47-05	Utiilties: Combined Water/Sewer		$108.04	
401-000-534-10-47-05	Utiilties: Combined Water/Sewer		$50.02	
401-000-534-10-47-05	Utiilties: Combined Water/Sewer		$26.92	
401-000-534-10-47-05	Utiilties: Combined Water/Sewer		$80.90	
401-000-534-80-31-00	Operating Supplies		$37.50	
401-000-534-80-31-02	Operating Supplies: Chlorine		$5.98	Airgas
401-000-535-10-31-00	Office/Operating Supplies		$37.50	
401-000-535-10-31-00	Office/Operating Supplies		$13.18	
401-000-535-10-31-00	Office/Operating Supplies		$21.49	
401-000-535-10-31-00	Office/Operating Supplies		$116.03	
401-000-535-10-41-13	Annual Software Maintenance		$100.83	microsoft
401-000-535-10-47-05	Utilities: Combined Water/Sewer		$108.04	
401-000-535-10-47-05	Utilities: Combined Water/Sewer		$50.02	
401-000-535-80-31-00	Operation Supplies		$60.84	Ace Hardware
401-000-535-80-31-00	Operation Supplies		$60.85	Ace hardware
			$3,392.54	
		Total Invoice	**$173,431.44**	
		Grand Total	**$173,431.44**	

Fund Transaction Summary

Transaction Type: Invoice
Fiscal: 2022 - Apr - April 7 Claims

Fund Number	Description	Amount
001	General Fund	$1,388.75
101	Street Fund	$1,301.77
106	Cemetery Fund	$46.35
401	Water & Sewer Utility Fund	$170,694.57
	Count: 4	**$173,431.44**

5. CONSENT AGENDA

(D) CLAIMS FOR 4/19/22

CITY OF CARNATION

CLAIMS VOUCHER
CERTIFICATION AND APPROVAL

We, the undersigned members of the Carnation City Council, do hereby attest that claims in the amount of **$108,954.14,** have been approved for payment by motion of the Carnation City Council at a regular meeting this **19th day of April, 2022.**

FUND#	FUND NAME	PURPOSE	AMOUNT	
001	GENERAL	ACCOUNTS PAYABLE	$	33,799.08
101	STREET OPS	Apr-22	$	5,710.13
106	CEMETERY		$	1,646.27
107	EQUIPMENT REPLACEMENT		$	-
108	PARK DEVELOPMENT		$	-
109	TRAFFIC IMPACT FEE		$	-
201	LTGO BOND REDEMPTION FUND		$	18,414.00
301	CAPITAL STREET IMPROVEMENT		$	17,051.51
302	CAPITAL FACILITIES		$	4,689.00
401	WATERWORKS OPERATING		$	21,109.80
402	WATER CAPITAL REPLACEMENT		$	-
404	WATER BOND REDEMPTION		$	-
406	LANDFILL ASSURANCE		$	6,443.16
407	SEWER DEBT SERVICE		$	-
408	SEWER CAPITAL PROJECTS		$	-
409	STORM WATER OPS		$	91.19
633	TRUST		$	-
		TOTAL CLAIMS	$	108,954.14

Kim Lisk, Mayor
Finance & Operations Committee

Invoices, Register & Voucher Review by:

Maria Pena — 4/13/2022
Finance/City Manager/Council — Date

Tim Harris, Councilmember
Finance & Operations Committee

Pursuant to CMC 3.12.030, the blanket voucher is to be signed by at least two members of the council committee after council approval.

Transaction Activity

Invoice	Vendor	Period	Amount	Number
0010	ARC ARCHITECTS, INC 30	2022 - Apr - Apr 19 Claims	$1,485.00	
004670433	Mountain Mist	2022 - Apr - Apr 19 Claims	$44.73	
0083674-IN	SAFEbuilt, LLC	2022 - Apr - Apr 19 Claims	$1,374.04	
013950	Koff & Associates Dec services	2022 - Apr - Apr 19 Claims	$5,718.75	
014284	Koff & Associates March services	2022 - Apr - Apr 19 Claims	$5,568.75	
1003-CARN	Maria Pena March services	2022 - Apr - Apr 19 Claims	$7,647.34	
114-12942759	UNITED SITE SERVICES	2022 - Apr - Apr 19 Claims	$401.43	
114-12964675	UNITED SITE SERVICES	2022 - Apr - Apr 19 Claims	$363.99	
1220254	Otak	2022 - Apr - Apr 19 Claims	$1,844.00	
1354-2022_2	InvoiceCloud	2022 - Apr - Apr 19 Claims	$754.35	
1354-2022_3	InvoiceCloud	2022 - Apr - Apr 19 Claims	$846.55	
16039104	HD Fowler Company	2022 - Apr - Apr 19 Claims	$183.56	
18298	KC Finance - Radio Comm Services	2022 - Apr - Apr 19 Claims	$127.18	
20 LTGO BOND 2022 Payment	CHASE ~ '20 LTGO Bond	2022 - Apr - Apr 19 Claims	$18,414.00	
2022 Renewal	MRSC Rosters MRSC Renewal	2022 - Apr - Apr 19 Claims	$135.00	
2022-02 3/13/2022	Venessa Sandoval	2022 - Apr - Apr 19 Claims	$387.50	
2030136	Utilities Underground	2022 - Apr - Apr 19 Claims	$34.83	
228122273-001	Office Depot	2022 - Apr - Apr 19 Claims	$191.49	
23292	BLUELINE	2022 - Apr - Apr 19 Claims	$2,400.00	
2P47465	Platt Electric Supply	2022 - Apr - Apr 19 Claims	$246.38	
3-16522	KPG	2022 - Apr - Apr 19 Claims	$15,207.51	
30313833	OMWBE	2022 - Apr - Apr 19 Claims	$100.00	
46480	Correct Equipment, Inc	2022 - Apr - Apr 19 Claims	$154.35	
518300096-4	Pacific Groundwater Group	2022 - Apr - Apr 19 Claims	$6,001.83	
5204-570442	Duvall Auto Parts	2022 - Apr - Apr 19 Claims	$63.13	
5273-MSP	HEMISPHERE SOLUTIONS	2022 - Apr - Apr 19 Claims	$2,372.11	
69278	O'BRIEN, BARTON & HOPKINS, PLLC Public Defense	2022 - Apr - Apr 19 Claims	$750.00	
79969	Automatic Wilbert Vault Co., Inc.	2022 - Apr - Apr 19 Claims	$1,646.00	
861928	Ogden Murphy Wallace PLLC	2022 - Apr - Apr 19 Claims	$21,928.50	
Feb 2022	Lynn Moberly	2022 - Apr - Apr 19 Claims	$1,405.87	

Reference	Vendor	Period	Amount	Number
Invoice				
	Prosecution services			
GKXW487	IRON MOUNTAIN	2022 - Apr - Apr 19 Claims	$32.18	
Kevin Dues Re-issued	Teamster Union Local 763	2022 - Apr - Apr 19 Claims	$50.00	
	Reissue Dues for Kevin			
Mar 20, 2022	CENTURYLINK	2022 - Apr - Apr 19 Claims	$121.95	
March 2022 Animal Control	KC Finance ~ Animal Control	2022 - Apr - Apr 19 Claims	$15.00	
	Animal Control			
March 2022 prosecution	Lynn Moberly	2022 - Apr - Apr 19 Claims	$1,405.87	
	Prosecution services			
March 2022, services	Maie Lee Jones	2022 - Apr - Apr 19 Claims	$384.17	
March 22 Services	BENJAMIN THOMPSON	2022 - Apr - Apr 19 Claims	$239.58	
March 22 Sewer Utility Tax	City of Carnation ~ Utility Tax	2022 - Apr - Apr 19 Claims	$3,142.79	
March 22 Water Utility Tax	City of Carnation ~ Utility Tax	2022 - Apr - Apr 19 Claims	$4,704.64	
March 31, 2022	PENDLETON CONSULTING, INC	2022 - Apr - Apr 19 Claims	$75.00	
Membership Renewal 6/22-3/23	American Water Works Association	2022 - Apr - Apr 19 Claims	$389.00	
	Renewal			
SVG Event Adair	Adair Hawkins	2022 - Apr - Apr 19 Claims	$25.67	
	SVG Meal			
Sweeping for March 2022	Davidson-Macri Sweeping Inc	2022 - Apr - Apr 19 Claims	$570.12	
		Total Invoice	$108,954.14	
		Grand Total	$108,954.14	

Fund Transaction Summary

Transaction Type: Invoice
Fiscal: 2022 - Apr - Apr 19 Claims

Fund Number	Description	Amount
001	General Fund	$33,799.08
101	Street Fund	$5,710.13
106	Cemetery Fund	$1,646.27
201	LTGO Bond Redemption	$18,414.00
301	Street Capital Improvement Fund	$17,051.51
302	Capital Facilities	$4,689.00
401	Water & Sewer Utility Fund	$21,109.80
406	Landfill Financial Assurance	$6,443.16
409	Stormwater Operations Fund	$91.19
	Count: 9	**$108,954.14**

Exhibit A

LOTS 9, 10, AND 11, BLOCK 15, TOLT TOWNSITE, COS PLAT OF TOLT

10. AGENDA BILLS

(A) AB22-24

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: An Ordinance amending Title 15 CMC by the addition of a new Chapter 15.45 Temporary Use Regulations thereto; adopting new regulations, and relocating and recodifying various pre-existing regulations governing construction trailers, mobile food services, temporary dwellings and other temporary land uses and structures.	**Agenda Bill No.:**	**AB22-24**
	Type of Action:	**ORDINANCE**
	Origin: *(Council/Manager)*	Council of the Whole
	Agenda Bill Author:	City Planner
EXHIBITS: • Proposed Ordinance No. <_____> • Proposed Changes to CMC 15.45	**Date Submitted:**	04/11/2022
	For Agenda of:	04/19/2022
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

City Council authorized staff to work on this item as part of the 2021 docket of land use code amendments. The addition of new Chapter 15.45 adopts new regulations and procedures and consolidates pre-existing provisions governing temporary uses.

Key amendments in this chapter include:

- Updates to ensure consistency with state statutes and/or case law governing the use of recreational vehicles for residential purposes.
- Adds or amends provisions for all temporary uses, temporary construction trailers and buildings, mobile food services, and special events on private property.

The amendment also reflects Council's direction at the public hearing to:

- Modify provisions for mobile food services to allow to operate up to three days with a temporary use permit.
- Delete provisions for temporary retail stands and the use of parked vehicles, subject to further discussions on these uses. These uses are currently being reviewed by the Planning Board and will be brought forth to the Council separately at a future date.

The Planning Board held a public hearing at their May 25, 2021 and made an affirmative recommendation to City Council for this proposed amendment. City Council held a public hearing at their February 15, 2022 meeting.

RECOMMENDED ACTION:

I move to approve an ordinance amending Title 15 CMC by the addition of a new Chapter 15.45 Temporary Use Regulations thereto; adopting new regulations, and relocating and recodifying various pre-existing regulations governing construction trailers, mobile food services, temporary dwellings and other temporary land uses and structures.

LEGISLATIVE HISTORY:

05/25/2021: Planning Board public hearing
06/15/2021: City Council review and discussion
02/08/2022: City Council review and discussion
02/15/2022: City Council public hearing

ACTION TAKEN					
MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

JPL
04/01/22

ORDINANCE NO. ___

AN ORDINANCE OF THE CITY OF CARNATION, WASHINGTON, AMENDING TITLE 15 CMC BY THE ADDITION OF A NEW CHAPTER 15.45 TEMPORARY USE REGULATIONS THERETO; ADOPTING NEW REGULATIONS, AND RELOCATING AND RECODIFYING VARIOUS PRE-EXISTING REGULATIONS GOVERNING CONSTRUCTION TRAILERS, MOBILE FOOD SERVICES, TEMPORARY DWELLINGS AND OTHER TEMPORARY LAND USES AND STRUCTURES; SETTING FORTH LEGISLATIVE FINDINGS; PROVIDING FOR SEVERABILITY; AND ESTABLISING AN EFFECTIVE DATE.

WHEREAS, pursuant to Chapter 35A.63 RCW and Chapter 36.70A RCW, the City of Carnation has established zoning and land use regulations governing development within the City; and

WHEREAS, the City desires to consolidate, recodify, and amend various pre-existing regulations governing temporary uses; and

WHEREAS, the City desires to adopt new regulations and procedures that address temporary uses; and

WHEREAS, the City desires to update provisions governing the use of recreational vehicles to address recent case law; and

WHEREAS, the City of Carnation Planning Board held a public hearing on May 25, 2021 to collect public testimony. At the close of the public hearing, the Planning Board made a motion to recommend approval to the City Council; and

WHEREAS, the City of Carnation City Council held a public hearing on February 15, 2022 to collect public testimony; and

WHEREAS, the addition of CMC Chapter 15.45 set forth herein is consistent with and will implement the City's Comprehensive Plan; NOW, THEREFORE,

THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DO ORDAIN AS FOLLOWS:

Section 1. Findings. The City Council hereby adopts the above recitals as findings in support of the regulations set forth in this ordinance. The City Council further adopts by reference the findings of the Planning Board dated May 25, 2021, together with the following:

A. The City is authorized by State law, including but not limited to Chapter 35A.63 RCW and Chapter 36.70A RCW, to establish zoning and land use regulations therefore.

B. The Planning Board conducted a public hearing on the substance of this ordinance on May 25, 2021, and recommended adoption by the City Council. The City Council held a public hearing on this ordinance on February 15, 2022.

C. The regulations set forth in this ordinance have been processed and considered by the City in material compliance with all applicable procedural requirements, including but not limited to requirements related to public notice and comment.

D. All relevant requirements of SEPA have been satisfied with respect to this ordinance.

E. The City Council has carefully considered, and the regulations set forth in this ordinance satisfy, the review criteria codified at CMC 15.100.030(E).

F. The regulations set forth in this ordinance are consistent with and will implement the City's Comprehensive Plan, and will further advance the public health, safety and welfare.

Section 2. Amendment of Title 15 CMC—Adoption of New Chapter 15.45 CMC. Title 15 of the Carnation Municipal Code is hereby amended by the addition of a new Chapter 15.45 Temporary Use Regulations to provide in its entirety as contained in Exhibit A, attached hereto and incorporated herein by this reference as if set forth in full.

Section 3. Copy of Commerce. Pursuant to RCW 36.70A.106, the Planning Director is hereby authorized and directed to provide a copy of this ordinance to the Washington State Department of Commerce within 10 days of adoption.

Section 4. Severability. If any section, sentence, clause or phrase of this ordinance should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity or constitutionality of any other section, sentence, clause or phrase of this ordinance.

Section 5. Effective Date. This ordinance or a summary thereof consisting of the title shall be published in the official newspaper of the City, and shall take effect and be in full force five (5) days after publication.

APPROVED by the Carnation City Council this _____ day of _____, 2022.

_____

MAYOR, KIMBERLY LISK

ATTEST/AUTHENTICATED:

_____
ACTING CITY CLERK, ANA CORTEZ

APPROVED AS TO FORM:
OFFICE OF THE CITY ATTORNEY:

BY _____
J. ZACHARY LELL

FILED WITH THE CITY CLERK: 04/01/2022
PASSED BY THE CITY COUNCIL: / /2022
PUBLISHED: / /2022
EFFECTIVE DATE: / /2022
ORDINANCE NO. ___

Exhibit A

Chapter 15.45 – TEMPORARY USE REGULATIONS

15.45.010 – Purpose.

The purpose of this chapter is to authorize and regulate certain temporary uses and structures when consistent with this title and when safe and compatible with uses in the general vicinity and adjacent uses.

15.45.020 – Applicability.

A. The temporary uses herein are intended to allow for those uses that are of a limited duration and/or frequency, which would not be allowed on a permanent basis.

B. Unless otherwise specified by other provisions of the CMC, a temporary use permit is required for all temporary uses and shall be processed and appealable as a Type I project permit in accordance with Chapters 15.09 and 15.11.

1. The city planner shall have the authority to impose reasonable conditions of approval to ensure that the temporary use will protect the public health, safety and welfare and will not result in adverse impacts to the surrounding area.

2. A temporary use permit shall not be granted for the same temporary use on a property more than once per calendar year.

15.45.030 – General provisions.

A. The following general standards shall apply to all temporary uses:

1. All temporary uses shall obtain, prior to occupancy of the site, all applicable permits, licenses and other approvals (i.e., business license, building permit, administrative approvals, etc.).

2. The applicant shall provide evidence of the property owner's written permission for the use to locate on private property;

3. No unauthorized encroachments on public rights-of-way are allowed;

4. No significant adverse impacts to public health and safety are created by the use;

5. There will be sufficient parking to accommodate the use;

6. The property owner, operator, or manager of any temporary use must be responsible for ensuring that the site remains free of debris or waste upon the conclusion of each day;

7. Unless otherwise specified by other provisions of the CMC, upon expiration of a temporary use permit, the temporary use shall be promptly discontinued.

15.45.040 – Construction trailers and buildings.

A. Temporary construction trailers and buildings for supervisory offices or for the storage of tools and equipment may be permitted in conjunction with active construction projects in all zoning districts, provided that such structures are:

1. Allowed only during periods of active construction in conjunction with an active civil or building permit; and

2. Allowed on an off-site location on an adjacent or nearby lot from the active construction project, subject to approval with a civil or building permit.

B. All temporary structures and improvements shall be removed within 30 days of project completion or cessation of work and prior to the issuance of a Certificate of Occupancy for the building or use, as determined by the building official.

C. The city manager or designee shall require a performance bond in an amount equivalent to the estimated cost of site restoration, including, but not limited to, removal of temporary structures and site improvements. Concurrently with the performance bond, the property owner shall execute a right of entry, release and hold harmless agreement, in a form approved by the city attorney, granting the City, its contractors and agents a right to enter upon the property and perform any site restoration work as needed.

15.45.050 – Mobile food services.

A. Mobile food services are allowed in all non-residential zones, subject to the following standards:

~~1. The property owner must provide written permission.~~

~~2~~1. The use must vacate the premises no later than (i) 24 hours, or (ii) 72 hours with approval of a temporary use permit; ~~not operate more than 12 hours out of every 24-hour period;~~.

2. The use may not install any seating permanently attached to the ground; and

3. The use must provide adequately sized and located waste collection containers during business operations.

15.45.080 – Use of ~~R~~recreational vehicles ~~as temporary dwelling units~~.

A. No recreational vehicle shall be occupied for residential or commercial purposes anywhere in the city of Carnation, except:

1. In the case of temporary uses per Section 15.45.090~~44.040~~ (Temporary emergency, construction, or repair residences); or

2. Recreational vehicles may be occupied by visitors within residential zones as a temporary guest residence for up to two weeks without a permit, or up to 30 days upon approval of a temporary recreational vehicle use permit. To obtain a permit, the following provisions must be met: ~~a period not to exceed thirty days where a zoning permit has been granted for such use, provided:~~

   a. Temporary occupancy shall not exceed thirty days in a calendar year/visitor,

   b. Under no circumstances shall a recreational vehicle be occupied while parked overnight on a public street,

   c. No recreational vehicle shall be serviced by a temporary or permanent sewer hook-up emptying into a private septic system or a municipal sewer, and

   d. Nor shall any space be provided for an occupied recreational vehicle for monetary or other compensation.

B. An applicant for such temporary use permit shall have seven days to make application to the city.

C. For purposes of this section, the term “occupied for residential purposes” shall mean any three of the following when conducted within the same 24-hour period:

1. Sleeping for a continuous period exceeding six hours;

2. Cooking or otherwise preparing food for consumption using a stove, burner, hot plate or other heating element;

3. Storing perishable food for a continuous period exceeding six hours;

4. Eating;

5. Bathing;

6. Washing or drying clothes;

7. Urinating or defecating.

D. Violations of this section shall not be enforced unless and until the City’s enforcement officer first inquires whether the violator is homeless or otherwise lacks a lawful place upon which to locate the

recreational vehicle. If the violator is homeless or otherwise lacks a lawful place upon which to locate the recreational vehicle, the enforcement officer shall not enforce this section against the violator unless and until the officer has: (i) verified the availability of a shelter or other lawful place for the recreational vehicle within a five mile radius of the Carnation city limits; (ii) the officer has notified the violator of such availability; and, if necessary, has offered to assist in transporting the violator to such place and; (iii) the violator continues to engage in conduct prohibited by this section notwithstanding such notification and offer by a reasonable deadline, which shall be no less than two hours measured from the officer's original notification and inquiry as provided herein.

15.45.090 - Temporary emergency, construction, or repair residences.

A. Temporary residences used on construction sites of non-residential premises shall be removed immediately upon the completion of the project.

B. Permits for temporary residences to be occupied pending the construction, repair, or renovation of the permanent residential building on a site shall expire within six months after the date of issuance, except that the city planner may renew such permit for one additional period not to exceed three months if it is determined that such renewal is reasonably necessary to allow the proposed occupants of the permanent residential building to complete the construction, repair, renovation, or restoration work necessary to make such building habitable.

15.45.100 - Temporary public structures.

A. Public agencies may erect and use temporary structures (e.g., portable school classrooms, civic uses, emergency command centers, health and social services centers, etc.) upon demonstrating that such a use is in the public benefit and that the use is temporary in nature. Permits for temporary public structures shall expire one year after issuance, but may be renewed annually by the city planner upon demonstration of continued public benefit and need.

15.45.110 - Special events.

A. In deciding whether a permit for a special event should be denied or additional conditions imposed for any reason specified in subsection B of this section~~Section 15.16.130(e), or in deciding what additional conditions to impose under Section 15.16.180~~, the city planner shall consider the following, (if the special event is conducted at all):

1. The hours of operation;
2. The amount of noise generated;
3. The applicants shall guarantee that all litter generated by the special event be removed at no expense to the city;
4. The parking and traffic generated by the event;
5. Use of public rights-of-way;
6. Use of public parks;
7. Sanitation and clean up;
8. Insurance;
9. Indemnity and hold-harmless agreements.

B. No permit for a special event shall be issued authorizing a special event under the following conditions:

1. When the time and/or size will substantially disrupt the use of any street or public place, or material portion thereof which is ordinarily subject to substantial congestion or traffic; or

2. When it is of a size or nature that requires the diversion of so great a number of police officers, or resources of the city to properly police and control the property or line of movement and the areas contiguous thereto, that allowing the special event would deny reasonable police protection to the city. The city planner shall have the authority to modify the time, place, or activity of the special event to facilitate public safety; provided, that the applicant's right of free speech is not denied thereby;

~~B~~C. In cases where it is deemed necessary, the city planner may require the applicant to post a bond to ensure compliance with the conditions of the special use permit.

~~C~~D. If the permit applicant requests the city to provide extraordinary services or equipment or if the city manager otherwise determines that extraordinary services or equipment should be provided to protect the public health or safety, the applicant shall be required to pay to the city a fee sufficient to reimburse the city for the costs of these services. This requirement shall not apply if the event has been anticipated in the budget process and sufficient funds have been included in the budget to cover the costs incurred.

E. The provisions of this section shall be construed, administered and enforced in a manner consistent with applicable standards governing freedom of speech and assembly under the United States and Washington State Constitutions.

10. AGENDA BILLS

(B) AB22-25

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: **An Ordinance** amending Chapter 15.110 CMC Marijuana Related Uses; repealing and replacing the City's regulations governing medical cannabis collective gardens with new standards for marijuana cooperatives in order to reflect recent State law changes; prohibiting such uses in all zoning districts of the City; and authorizing State-licensed marijuana retailers to locate within the City's Agri-tourism and Industries (AGI), Horticultural Commercial (HC), Light Industrial/Manufacturing (LI/M), and Service Commercial (SC) zones.	**Agenda Bill No.:**	**AB22-25**
	Type of Action:	**ORDINANCE**
	Origin: *(Council/Manager)*	Council of the Whole
	Agenda Bill Author:	City Planner
EXHIBITS: • Proposed Ordinance No. <_____> • Proposed Changes to CMC 15.110	**Date Submitted:**	04/01/2022
	For Agenda of:	04/19/2022
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

City Council directed staff to work on this item to proactively address the marijuana retailer use.

Key amendments in this chapter include:

- Adjusts permissions to allow for the marijuana retailer use in the AGI, LI/M, and SC zones, in addition to the HC zone where it is currently permitted.
- Updates to ensure consistency with amendments to State statutes and definitions associated with marijuana uses.

The amendment also reflects Council's direction to:

- Preclude the marijuana retailer use in the CBD and MU zones.

The Planning Board held a public hearing at their September 20, 2021 meeting and made affirmative recommendations to City Council for this proposed amendment. City Council held a public hearing at their February 15, 2022 meeting.

RECOMMENDED ACTION:

I move to approve an ordinance amending Chapter 15.110 CMC Marijuana Related Uses; repealing and replacing the City's regulations governing medical cannabis collective gardens with new standards for marijuana cooperatives in order to reflect recent State law changes; prohibiting such uses in all zoning districts of the City; and authorizing State-licensed marijuana retailers to locate within the City's Agri-tourism and Industries (AGI), Horticultural Commercial (HC), Light Industrial/Manufacturing (LI/M), and Service Commercial (SC) zones.

LEGISLATIVE HISTORY:

09/20/2021: Planning Board public hearing
10/19/2021: City Council review and discussion
02/08/2022: City Council review and discussion
02/15/2022: City Council public hearing

ACTION TAKEN					
MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

JPL
02/08/22
JZL
03/30/22

ORDINANCE NO. ___

AN ORDINANCE OF THE CITY OF CARNATION, WASHINGTON, AMENDING CHAPTER 15.110 CMC MARIJUANA RELATED USES; REPEALING AND REPLACING THE CITY'S REGULATIONS GOVERNING MEDICAL CANNABIS COLLECTIVE GARDENS WITH NEW STANDARDS FOR MARIJUANA COOPERATIVES IN ORDER TO REFLECT RECENT STATE LAW CHANGES; PROHIBITING SUCH USES IN ALL ZONING DISTRICTS OF THE CITY; AUTHORIZING STATE-LICENSED MARIJUANA RETAILERS TO LOCATE WITHIN THE CITY'S AGR-TOURISM AND INDUSTRIES (AGI), HORTICULTURAL COMMERCIAL (HC), LIGHT INDUSTRIAL/MANUFACTURING (LI/M) AND SERVICE COMMERCIAL (SC) ZONES; SETTING FORTH LEGISLATIVE FINDINGS; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

WHEREAS, pursuant to Chapter 35A.63 RCW and Chapter 36.70A RCW, the City of Carnation has established zoning and land use regulations governing development within the City; and

WHEREAS, amendments to State statutes on medical cannabis collective gardens were repealed and replaced with a statute authorizing marijuana cooperatives; and

WHEREAS, the City desires to amend the City's regulations governing marijuana related uses to ensure consistency with recent amendments to pertinent State statutes and definitions, and to prohibit marijuana cooperatives in all zoning districts of the City; and

WHEREAS, the City Council desires to allow marijuana retailers to locate within the City's agri-tourism and industries (AGI), light industrial/manufacturing (LI/M), and service

commercial (SC) zoning districts, in addition to the horticultural commercial (HC) zoning district where such uses are currently allowed, in order to expand economic development and reduce unnecessary limitations on such uses; and

WHEREAS, the City of Carnation Planning Board held a public hearing on September 20, 2021 to collect public testimony on the substance of this ordinance and recommended approval to the City Council; and

WHEREAS, the City of Carnation City Council held a public hearing on February 15, 2022 to collect public testimony; and

WHEREAS, the amendments of CMC Chapter 15.110 set forth herein are consistent with the City's Comprehensive Plan and will implement the City Council's community planning vision; NOW, THEREFORE,

THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DO ORDAIN AS FOLLOWS:

Section 1. Findings. The City Council hereby adopts the above recitals as findings in support of the regulations set forth in this ordinance. The City Council further adopts by reference the findings of the Planning Board dated September 20, 2021, together with the following:

A. The City is authorized by State law, including but not limited to Chapter 35A.11 RCW, Chapter 36.70A RCW, Chapter 35A.63 RCW, Chapter 36.70B RCW and Chapter 58.17 RCW, to enact regulations governing the use and development of real property within the City's jurisdiction.

B. The Planning Board conducted a public hearing on the substance of this ordinance on September 20, 2021 and recommended adoption by the City Council. The City Council held a public hearing on this ordinance on February 15, 2022.

C. The regulations set forth in this ordinance have been processed and considered by the City in material compliance with all applicable procedural requirements, including but not limited to requirements related to public notice and comment.

D. All relevant requirements of SEPA have been satisfied with respect to this ordinance.

E. The City Council has carefully considered, and the regulations set forth in this ordinance satisfy, the review criteria codified at CMC 15.100.030(E).

F. The regulations set forth in this ordinance are consistent with and will implement the City's Comprehensive Plan, and will further advance the public health, safety, and welfare.

Section 2. Amendment of Chapter 15.110 CMC. Chapter 15.110 of the Carnation Municipal Code is hereby amended to provide in its entirety as contained in Exhibit A, attached hereto and incorporated herein by this reference as if set forth in full.

Section 3. Copy to Commerce. Pursuant to RCW 36.70A.106, the City Planner is hereby authorized and directed to provide a copy of this ordinance to the Washington State Department of Commerce within 10 days of adoption.

Section 4. Severability. If any section, sentence, clause, or phrase of this ordinance should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity or constitutionality of any other section, sentence, clause, or phrase of this ordinance.

Section 5. Effective Date. This ordinance or a summary thereof consisting of the title shall be published in the official newspaper of the City and shall take effect and be in full force five (5) days after publication.

APPROVED by the Carnation City Council this _____ day of _____, 2022.

_____
MAYOR, KIMBERLY LISK

ATTEST/AUTHENTICATED:

_____
ACTING CITY CLERK, ANA CORTEZ

APPROVED AS TO FORM:
OFFICE OF THE CITY ATTORNEY:

BY _____
J. ZACHARY LELL

FILED WITH THE CITY CLERK: 04/01/2022
PASSED BY THE CITY COUNCIL: / /2022
PUBLISHED: / /2022
EFFECTIVE DATE: / /2022
ORDINANCE NO. ___

Exhibit A

Chapter 15.110 - MARIJUANA RELATED USES

~~**15.110.010 - Collective gardens.**~~

~~"Collective garden" means the growing, production, processing, transportation, and delivery of cannabis, by qualifying patients for medical use, as set forth in Chapter 69.51A RCW, and subject to the following conditions:~~

~~A. A collective garden may contain no more than fifteen plants per patient up to a total of forty-five plants;~~

~~B. A collective garden may contain no more than twenty-four ounces of usable cannabis per patient up to a total of seventy-two ounces of usable cannabis;~~

~~C. A copy of each qualifying patient's valid documentation, including a copy of the patient's proof of identity, must be available at all times on the premises of the collective garden;~~

~~D. No usable cannabis from the collective garden is delivered to anyone other than one of the qualifying patients participating in the collective garden;~~

~~E. A collective garden may contain separate areas for growing, processing, and delivering to its qualified patients, provided that these separate areas must be physically part of the same premises, and located on the same parcel or lot. A location utilized solely for the purpose of distributing cannabis shall not be considered a collective garden; and~~

~~F. No more than one collective garden may be established on a single tax parcel.~~

~~**15.110.020 - Medical cannabis collective gardens.**~~

~~"Collective gardens" as defined in CMC 15.110.010 are prohibited in the following zoning districts:~~

~~A. All residential zones, including without limitation the R2.5, R3, R4, R6, R12, R24 and RMHP zoning districts;~~

~~B. All commercial zones, including without limitation the CBD, MU, HC, AGI and SC zoning districts;~~

~~C. All light industrial/manufacturing zones, including without limitation the LI/M zoning district;~~

~~D. All public zones, including without limitation the PU zoning district;~~

~~E. All parks and recreation zones, including without limitation the P/R zoning district; and~~

~~F. Any new zoning district established after June 18, 2013.~~

~~In addition to any other applicable remedy and/or penalty, any violation of this section is declared to be a public nuisance per se, and may be abated by the city attorney under applicable provisions of this code and/or state law, including without limitation the provisions of Chapter 8.26 CMC.~~

15.110.030 - State-licensed facilities—Definitions.

A. Unless the context clearly indicates otherwise, all terms used in Sections 15.110.030, et seq. shall have the meanings established pursuant to RCW 69.50.101. ~~In the event of an irreconcilable conflict between any definition set forth in this chapter and any definition set forth in RCW 69.50.101, the statutory definition shall control to the extent of such conflict.~~

~~B. "Marijuana" means all parts of the plant cannabis, whether growing or not, with a THC concentration greater than zero point three percent on a dry weight basis; the seeds thereof; the resin extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds or resin. The term does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plants, any other compound, manufacture, salt,~~

~~derivative, mixture, or preparation of the mature stalks (except the resin extracted therefrom), fiber, oil, or cake, or the sterilized seeds of the plant which is incapable of germination.~~

~~C. "Marijuana processor" means a person licensed by the State Liquor Control Board to process marijuana into usable marijuana and marijuana infused products, package and label usable marijuana and marijuana infused products for sale in retail outlets, and sell usable marijuana and marijuana infused products at wholesale to marijuana retailers.~~

~~D. "Marijuana producer" means a person licensed by the State Liquor Control Board to produce and sell marijuana at wholesale to marijuana processors and other marijuana producers.~~

~~E. "Marijuana infused products" means products that contain marijuana or marijuana extracts and are intended for human use. The term "marijuana infused products" does not include usable marijuana.~~

~~F. "Marijuana retailer" means a person licensed by the State Liquor Control Board to sell usable marijuana and marijuana infused products in a retail outlet.~~

~~G. "Usable marijuana" means dried marijuana flowers. The term "usable marijuana" does not include marijuana infused products.~~

15.110.040 - Marijuana related uses.

A. The production, processing and retailing of marijuana is and remains illegal under federal law. Nothing herein or as provided elsewhere in the ordinances of the city of Carnation is an authorization to circumvent federal law or provide permission to any person or entity to violate federal law. Only state-licensed marijuana producers, marijuana processors, and marijuana retailers may locate in the city of Carnation and then only pursuant to a license issued by the state of Washington. The purposes of these provisions is solely to acknowledge the enactment by Washington voters of Initiative 502 and a state licensing procedure and to permit to, but only to, the extent required by state law marijuana producers, marijuana processors, and marijuana retailers to operate in designated zones of the city.

B. Marijuana producers may be located only in the Horticultural Commercial (HC) zone of the city. Such facilities and uses may be located only at designated sites licensed by the state of Washington and fully conforming to state law.

C. Marijuana processors may be located only in the Horticultural Commercial (HC) zone of the city.~~, but~~ Such facilities and uses may be located only at designated sites licensed by the state of Washington and fully conforming to state law.

D. Marijuana retailers may be located only in the Agri-Tourism and Industries (AGI), Horticultural Commercial (HC), Light Industrial/Manufacturing (LI/M), and Service Commercial (SC) zones of the city. Such facilities and uses may be located only at designated sites licensed by the state of Washington and fully conforming to state law.

E. In addition to any other applicable remedy and/or penalty, any violation of this section is declared to be a public nuisance per se, and may be abated by the city attorney under the applicable provisions of this code or state law, including but not limited to the provisions of CMC Chapter 8.26.

15.110.050 – Cooperatives.

A. "Cooperatives" as described in RCW 69.51A.250(1) are prohibited in the following zoning districts:

1. All residential zones, including without limitation the R2.5, R3, R4, R6, R12, R24, and RMHP zoning districts;
2. All commercial zones, including without limitation the AGI, CBD, HC, MU, and SC zoning districts;
3. All light industrial/manufacturing zones, including without limitation the LI/M zoning district;
4. All parks and recreation zones, including without limitation the P/R zoning district; and
5. Any new zoning district(s) established after the effective date of the ordinance codified in this chapter.

B. In addition to any other applicable remedy and/or penalty, any violation of this section is declared to be a public nuisance per se, and may be abated by the city attorney under applicable provisions of this code and/or state law, including without limitation the provisions of Chapter 8.26 CMC.

10. AGENDA BILLS

(C) AB22-26

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: **A Motion** authorizing the City Manager to negotiate and execute a Consultant Agreement with AHBL, Inc., in an amount not to exceed $335,000 for development review and Comprehensive Plan periodic update services from May 1, 2022 to December 31, 2024.	**Agenda Bill No.:**	**AB22-26**
	Type of Action:	**MOTION**
	Origin: *(Council/Manager)*	City Manager
	Agenda Bill Author:	City Planner
EXHIBITS: • Proposed Scope of Work, Statement of Qualifications, and Rate Schedule	**Date Submitted:**	04/01/2021
	For Agenda of:	04/19/2021
	Expenditure Required:	$300,000
	Amount Budgeted:	$35,000
	Appropriation Required:	$300,000 (revenue & expenditure)

SUMMARY STATEMENT AND DISCUSSION:

In 2021, the City contracted with AHBL to assist staff with processing a surge in development permit applications, and our experience with AHBL continues to be positive. This proposed agreement would renew their on-call development review services through 2024 to assist in processing the continued surge in development permit applications. The agreement would also augment the scope of work to include assistance with the periodic update of the Comprehensive Plan.

Proposed allocation per period is as follows:
Development Review (cost recovery for private development projects): $265,000
- May-December 2022: $65,000
- FY 2023: $100,000
- FY 2024: $100,000

Comprehensive Plan (general fund): $35,000

Contract period: 5/1/2022-12/31/2024 (32 months)

RECOMMENDED ACTION: I move to authorize the City Manager to negotiate and execute a Consultant Agreement with AHBL, Inc. in an amount not to exceed $335,000 for on-call development review and Comprehensive Plan periodic update services from May 1, 2022 to December 31, 2024.

LEGISLATIVE HISTORY:

ACTION TAKEN					
MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

EXHIBIT A
SCOPE OF WORK

This scope of work is to provide off-site development review and planning assistance (Planning Services) to the City of Carnation City Planner. Work will primarily include review of land use applications for consistency with Carnation Municipal Code, zoning review of construction permit applications (i.e., civil and building permits), review of land use and construction permit applications under deadlines established by law, and general customer assistance for planning and zoning issues. The following is AHBL's Inc. proposed scope of services:

- Attend pre-application meetings;
- Perform site visits;
- Review land use development and construction permit applications to ensure compliance with applicable zoning, subdivision, environmental review, conditions of approval, Design Standards and Guidelines, and any other applicable requirements ;
- Review Shoreline Permits and request for Letters of Exemption;
- Track development and building permit applications to ensure that a final decision issues within the deadlines established by law;
- Review SEPA/NEPA documentation for purposes of recommending additional studies, SEPA determinations, and/or mitigation measures (this would not include review of technical studies outside our area of expertise);
- Manage the work of environmental and/or technical consultants;
- Communicate and coordinate with applicants, their consultants, other agencies, City staff and other development review staff;
- Provide GIS Support;
- Prepare staff reports and recommendations in consultation with and under supervision of City staff; and
- Present to the Hearing Examiner, Planning Board, and City Council as applicable.

This scope of work also includes limited long-range planning tasks as directed by the City of Carnation associated with requirements the City is obligated to meet under the Growth Management Act. When performing larger long-range planning tasks (such as processing amendments to the City's Comprehensive Plan, zoning code, or other state mandates), we will provide the City with a written scope of work and time estimate for completion as a task order prior to completing any work.

Wayne Carlson will serve as principal-in-charge for AHBL to provide day-to-day oversight of our planners and will coordinate with City staff to make sure that we are meeting the City's needs. As principal-in-charge, Wayne Carlson will be involved to ensure that AHBL, Inc. provides these services in an efficient and cost-effective manner, including bringing the appropriate additional resources to the projects as needed and/or desired by the City of Carnation. We will not split review tasks among multiple AHBL staff.

AHBL understands that the City has a cost-recovery system in its fee schedule for consultant review of development applications. We are accustomed to tracking our time by each project and will provide separate invoices for each task to facilitate reimbursement in a manner consistent with the City's cost-recovery system, specific to the City's permit tracking and Task Order process. In order to keep costs at a minimum, we will track our time by each project and

invoice the City separately for each application on a monthly basis. Other time that is not directly related to a specific project will be invoiced to a general project number.

Nicole Stickney would be assigned as our project manager to perform this work within the City Planner or her designee.

STATEMENT OF QUALIFICATIONS

COMPREHENSIVE PLAN PERIODIC UPDATE

City of Carnation

March 25, 2022

March 25, 2022

Ms. Jean Lin
City Planner
City of Carnation
4621 Tolt Avenue
PO Box 1238
Carnation, WA 98014-1238

Civil Engineers

Structural Engineers

Landscape Architects

Community Planners

Land Surveyors

RE: Comprehensive Plan Periodic Update, City of Carnation

Dear Ms. Lin:

We are pleased to provide our proposal and qualifications to the City of Carnation for direct assistance in conducting a periodic updated to the City's Comprehensive Plan according to requirements of the Growth Management Act. We understand that our primary role in this endeavor will be to assist the city in planning and delivering a robust and effective community outreach program. We have a proven track record in this arena; we have assisted multiple jurisdictions around the state in effectively engaging diverse communities to provide input on plans, projects, and policy updates.

We have greatly enjoyed our work in the past year supporting your planning department with on-call planning services; during our time we have gained familiarity with the community, the development codes, and City staff which will help us to be successful advisors during the Comprehensive Plan update.

Nicole Stickney will continue to serve as your primary point of contact in the project manager role on this contract. Wayne Carlson, Principal-In-Charge will provide quality control/ assurance.

This SOQ outlines our capacity and experience and showcases our talented team. We are open to adjusting our proposal to ensure you get exactly what you envision. Thank you for your consideration and we are looking forward to personally introducing you to our team.

Warmest regards,

Sincerely,

Nicole Stickney, AICP
Senior Planning Project Manager
E: nstickney@ahbl.com
P: (509) 316-7131

Wayne E. Carlson, FAICP, LEED AP
Principal
E: wecarlson@ahbl.com
P: (206) 267-2425

SEATTLE
1200 6th Avenue
Suite 1620
Seattle, WA 98101-3117
206.267.2425
206.267.2429 FAX
www.ahbl.com

Firm Qualifications: Section 1
The People Who Get the Job Done.



About AHBL - Community Planning Expertise

AHBL Develops Comprehensive Plan Updates with Foresight at the Forefront.

Founded in 1969, AHBL provides planning services for counties and cities, as well as clients in the private sector. Our planning group has diverse backgrounds in public sector planning and private land use consulting. We thrive in an on-call capacity, offering strong partnership to the municipalities with whom we work, and an invaluable resource to the general public. Our team members are able to navigate the challenges of quick turnarounds and high expectations, and offer solutions proven time and again in our work with other municipalities in a similar environment.

Our planners also have extensive experience with large-scale, multi-disciplinary projects and we are skilled in explaining complex issues and concepts in a concise, straightforward manner to the public and elected officials.

AHBL has worked with several communities throughout Western and Eastern Washington to provide comprehensive plan updates and amendments. Through our experience working with diverse communities throughout the State, we have learned that engaging with each community to identify and define relevant to the economic and growth opportunities is vital to creating an implementable comprehensive plan.



Geographic Familiarity

We have Planners working in our Seattle and Tacoma offices who are King County residents. We are very familiar with the Region and the communities in King and Pierce Counties.

We understand that every corner of Washington has a unique setting, individual assets, and a distinct mixture of challenges combined with varying local attitudes about growth and development impacts. We set ourselves apart by understanding the local "culture" and customs of each of the communities we work within. After all, you will want to have assistance from a team that understands the local conditions in Carnation.



360º Perspective

Unlike other teams that only prepare updates to comprehensive plans and zoning ordinances, we also offer experience serving as on-site, on-call consultants where we review projects on behalf of municipal clients.

We also design projects for both public and private sector clients. You will benefit from our practical, and in-depth understanding to review projects from "both sides" of the table. This 360° perspective will allow you to get the most from your investments on this contract.



Client Centered

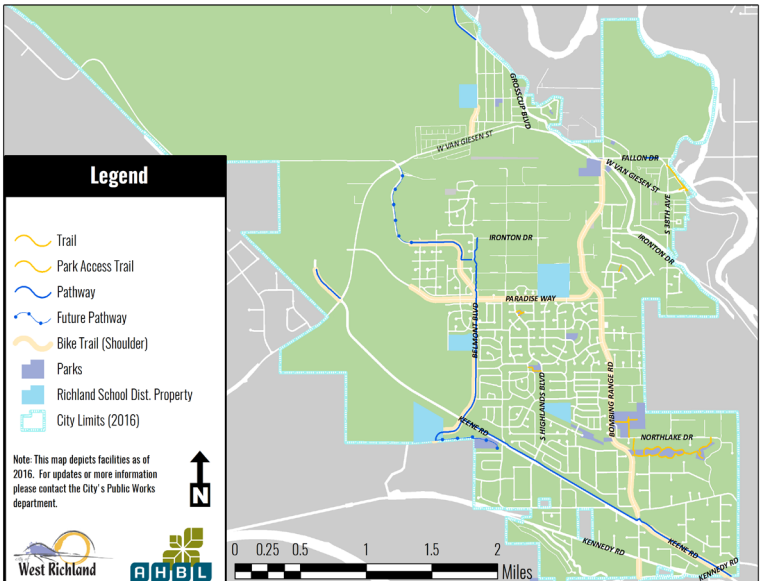
AHBL has a planning staff of 12 professionals with various backgrounds and technical expertise specialties, including environmental review, urban design, public policy, code writing, and public engagement. This provides you with a tremendously prepared team to rely upon. We pride ourselves on our responsible, client-centered approaches where your needs can be met with ease. We will listen to your concerns and are committed to anticipating your needs.

Capacity of the AHBL Team

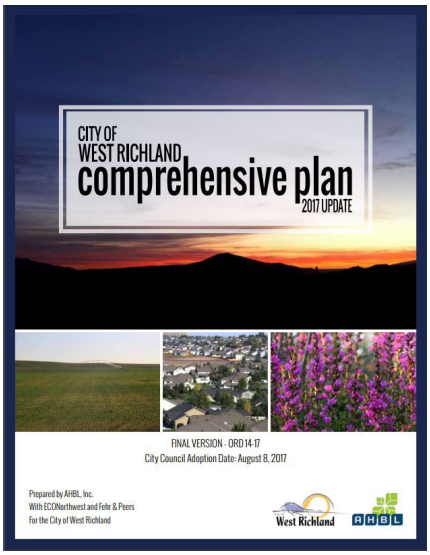
AHBL is well suited to provide the City of Carnation with the full complement of planning services that cities are obligated to perform under the GMA, SEPA, and the SMA. We have a staff of 12 planners so that we can staff up or down to handle large volumes of applications and other projects that the City may need to perform.

Our team includes expertise with the preparation of urban design standards, comprehensive and subarea plans, and development regulations throughout Washington and California. As an on-call planning consultant we also perform project reviews and other current planning tasks. Therefore, we appreciate the challenges of implementing plan visions through municipal codes and standards and endeavor to ensure that the codes and standards that we prepare are clear and easy to apply. Travel would be based from the closest office.

COMPREHENSIVE PLAN
CITY OF WEST RICHLAND, WA



▲ A map developed by the City of West Richland and AHBL illustrates existing and planned pathways, bicycle lanes and trails.



In 2018, the City of West Richland and AHBL were awarded the Joint APA-PAW Planning Award for Comprehensive Planning/Development Regulations - Small Cities/Counties.

AHBL served as the prime consultant, working collaboratively with the City of West Richland staff and officials on the periodic update of their Comprehensive Plan.

The Comprehensive Plan is the long-term strategy to manage the City's natural and built environment. The plan is a GMA-compliant "blueprint" for the next 20 years of growth, and positions West Richland to continue thriving as a community that retains its welcoming, neighborly character, and achieves the economic growth necessary to maintain a high quality of life.

AHBL facilitated a series of workshops to examine the vision statement for the City's Comprehensive Plan, confirm key policy and regulatory concerns, and develop land use strategies to support the City's policies and objectives. We also attended and presented at specific Planning Commission meetings, and developed outreach materials for the community.

We completed a gap analysis based on Department of Commerce's Expanded Comprehensive Plan Checklist, to identify unnecessary, redundant, and inconsistent information to develop a more concise and usable document.
The plan was adopted in mid-2017, and is a complete revision of the previous document, including a new layout with high-quality graphic illustrations. The final document consists of clear, concise text and policies that are supported by information in existing documents, new plans and studies, data analysis, public input, and best practices that have had successful application in other jurisdictions.

A noteworthy outcome of the update was the modification to the City's Land Use Map. A large portion of the Lewis & Clark Ranch was redesignated as "Urban Transition" with 6,139 acres of the ranch's more than 7,800 acres to be held in transition during the 20-year planning period of the Comprehensive Plan. In addition to the re-designation, we made revisions and updates to the plan to ensure compliance with the requirements of the GMA.

COMPREHENSIVE PLAN UPDATE
FRANKLIN COUNTY, WA



In 2021, Franklin County and AHBL were awarded the APA Washington, Excellence in Planning Award for Comprehensive Planning/Development Regulations - Large Cities/Counties

AHBL assisted Franklin County, the fastest growing county in Washington State at the time, with an update to its comprehensive plan. The project launched in late 2017, and the County experienced major and multiple staffing transitions during that time. AHBL provided essential continuity in this important endeavor, despite the disturbances.

AHBL land use planners supported the County's Planning Commission in hosting multiple meetings on various topics spanning over a year. The planners regularly updated a state-hosted "EZ View" website for the project, furnishing all project materials and meeting announcements in an accessible and transparent format to the public. The project experienced a high level of engagement from advocacy groups and agencies alike.

AHBL assisted the County to reformulate its county-wide planning policies, which had not been changed from the time that the County first opted into planning under the GMA. Additionally, AHBL assisted the County with addressing key hot topics, such as establishing permitting policies to address groundwater availability challenges, ensuring adequate protection of resource lands under the GMA, addressing future housing needs, and incorporating recently adopted documents, such as a Voluntary Stewardship Program Work Plan and the County's Stormwater Management Plan.

One unique aspect of this project is that the City of Pasco submitted an application to Franklin County to expand its Urban Growth Area (UGA) by over 4,800 acres during this process. The City's request did not include all the necessary items to support the request, such as a buildable lands analysis, a sufficiently detailed environmental review, or a complete capital facilities improvement plan. AHBL assisted Franklin County in communicating to the City the requirements for processing a UGA expansion request under the GMA and facilitated coordination with partner agencies, such as the Commerce's Growth Management Services and the regional Washington State Department of Transportation office for comments. The City subsequently revised their request and prepare an EIS for the proposal, drawing on outside consultant assistance and expertise to produce supporting materials and analysis for their proposal.

This project also included an exhaustive and systematic review of the County's development regulations requiring methodical analysis to update, clarify, and reorganize zoning code to achieve compliance with state laws, including the Local Project Review Act and to eliminate inconsistencies and ambiguity.

BADGER MOUNTAIN SOUTH
CITY OF RICHLAND, WA

This multi-phase/year build-out development is planned to include more than 5,000 new homes ranging from single-family homes and town homes to condos and other multi-family units. In addition to neighborhood schools and more than 400 acres of connected trails, parks and community gathering spaces, the development will also feature a variety of upscale retail center and restaurants to meet the needs of the surrounding residents.

AHBL took over the project in 2013 to help the owner make the property more attractive to developers. AHBL began by substantially relaxing the requirements in the Land Use Designation Regulations (LUDR), the set of codes governing development of the 1,480 acre master planned community. AHBL's changes focused on making development more economical as well as sustainable. As a result, West Vineyard, the first phase of construction under the new LUDR, saw lot sales increase approximately 50%. In 2020, AHBL was engaged to prepare further updates to the LUDR. Nicole Stickney has prepared a host of changes to the LUDR in close coordination with developers, the owners and with City of Richland Staff.

Private-Sector Experience



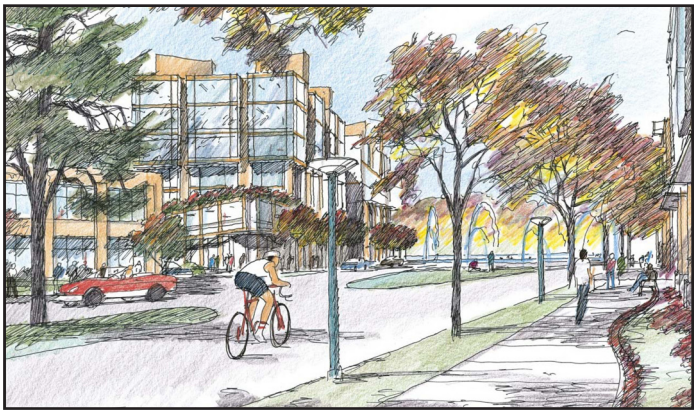
LAKE STEVENS CENTER SUBAREA PLAN & PLANNED ACTION EIS
LAKE STEVENS, WA

AHBL assisted the City of Lake Stevens with the preparation of two subarea plans and Planned Action Environmental Impact Statements (EISs) for areas known as Frontier Village and its newly annexed 20th Street corridor.

The City of Lake Stevens bills itself as the "community around the lake." However, prior to our efforts, most residents in town could not identify a town center. For some, the town center was Frontier Village, a 1970's-era strip mall located near the junction of two busy state highways. This area was not the centerpiece that city leaders wanted to carry forward into the future.

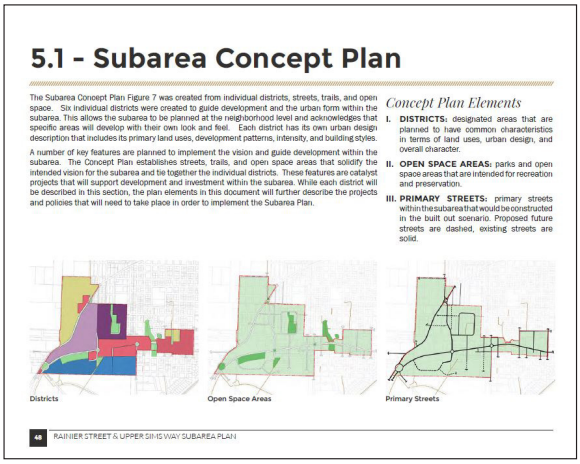
The 20th Street corridor was envisioned to become an employment and retail center where office structures, large-scale retail, and multi-family residential neighborhoods are attractively designed to occur within the abundant open spaces resulting from the area's abundant wetland resources. Those uses would occur along the 20th Street corridor with low and medium density single-family residential uses radiating outward.

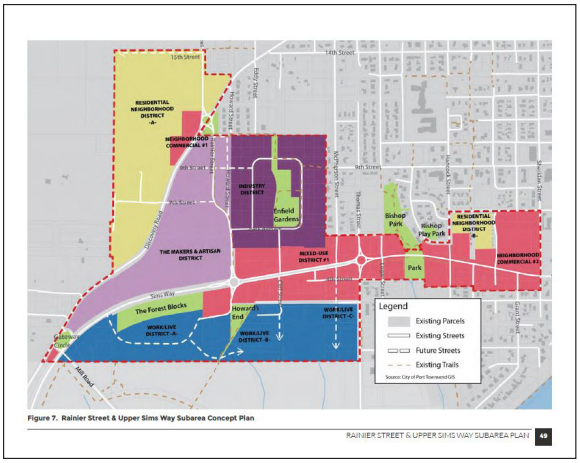
Elements of the Planned Action EIS included land use, housing, utilities, transportation, cultural resources, aesthetics, natural environment, air, and public services. Publication of both draft Planned Action EISs occurred in January 2011 and the Final Planned Action EISs were issued in July 2012.



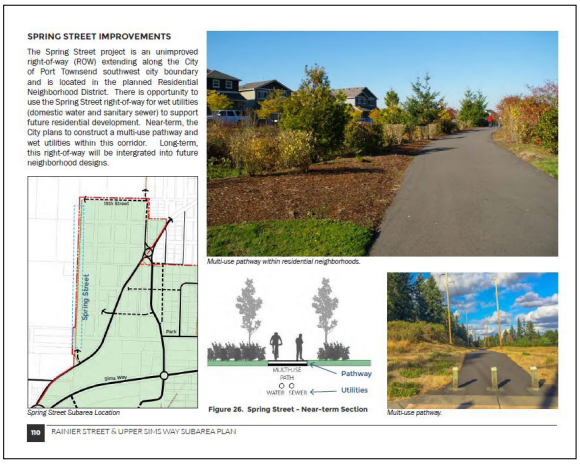
To better define a vibrant mixed-use center that the Lake Stevens community can be proud of, Wayne Carlson helped develop a vision for the Frontier Village area that has been branded as Lake Stevens Center.

RAINIER STREET & UPPER SIMS WAY SUBAREA PLAN
PORT TOWNSEND, WA





▲ Subarea Vision Element



More than 20 years in the making, the Rainier Street and Upper Sims Way Subarea Plan defines a vision to transform the City's western gateway into a dynamic, mixed-use district rooted in traditional and artisan trades. As early as 1993, the City desired a plan for this overlooked area of town. AHBL planners helped the City create a plan to attract employment and housing investment. The subarea contains a unique blend of redevelopment areas, greenfield sites, and several conservation corridors. The project strategy focuses on character districts and future transportation corridor investments to create its urban design and to weave the area into the historic community framework.

Relevant Project Components

AHBL led the entire planning process that included the preparation of the subarea plan and implementation strategies. The implementation strategy includes urban design, public policies, catalyst projects, and development regulations.

Baseline Policies and Conditions: We first reviewed the City's existing plans, regulations, and policies to establish a baseline for the subarea. We also explored the demographic and population characteristics to understand those for whom we were planning.

Visioning and Engagement: Next, we focused on a robust public involvement plan that engaged a working group, the general public, and the Planning Commission to articulate the community's vision. This engagement traversed the project timeline as stakeholders commented on plan components, designs, and draft policies at key milestones. AHBL's planners engaged stakeholders through hands-on workshops, interviews, and on-line surveys. We engaged the Planning Commission and the City Council through work sessions to help us write the plan, strategies, and capital improvement recommendations.

Integration and GMA Compliance: AHBL structured the Subarea Plan to coincide with the City's existing policy framework, Comprehensive Plan designations, and zoning districts. We also aligned the Plan with the elements, structure, and analysis characteristic of Washington State Growth Management Act comprehensive plans. The Subarea Plan respects the natural environment and celebrates the critical areas through conservation and buffering. The project includes a non-project SEPA environmental review for the subarea plan and the zoning amendments.

Economic Prosperity: The plan included a market study that provided insight and findings on existing demand, opportunities, and challenges. AHBL staff used these findings to guide its recommendations for land use, housing, and capital improvements. We amended the City's land use and zoning standards to remove regulatory barriers to private investment while staying true to the project vision. The Plan also identifies infrastructure and capital improvements to entice future development.

SHORELINE MASTER PROGRAM UPDATE

CITY OF WEST RICHLAND, WA

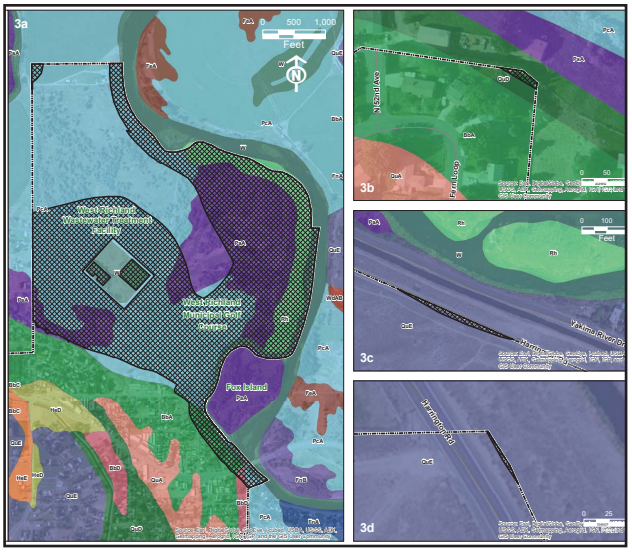
AHBL assisted the City of West Richland in updating its Shoreline Master Program (SMP) according to Department of Ecology Guidelines and the state Shoreline Management Act.

We served as the prime consultant responsible for overall project management, as well as public involvement planning and implementation, GIS mapping, development of policies and regulations, and adoption assistance. Our biology subconsultant led the Shoreline Inventory and Characterization Report and they were responsible for the Cumulative Impacts Analysis and Restoration Plan. The role of the region's agriculture and water management practices in shoreline planning was one of several key factors considered in preparation of the update.

Unusual for an incorporated area, the City of West Richland has very large agricultural areas along the Yakima River. The City's commercial center also lies near the Yakima River. Economic development and flood hazard issues played important parts in the project.

AHBL staff coordinated with Ecology Shoreline Planners (Lennard Jordan, Catherine Reed, and Angela San Filippo), Shane Early of the Washington State Department of Natural Resources, and Stephenie Kramer with the Washington State Department of Archaeology and Historic Preservation related to concerns associated with the protection of burial sites that might exist along the reaches of the Yakima River within West Richland.

To address the City's concerns about long-term budgetary impacts, the Restoration Plan relies on programmatic opportunities that coincide closely with other regional restoration planning efforts. We identified potential partners and funding opportunities to implement the Restoration Plan. The update included revising and updating critical regulations for the City in shoreline jurisdiction and providing separate Critical Areas Regulations as an appendix to the SMP.



COMPREHENSIVE PLAN

CITY OF EDGEWOOD, WA

AHBL staff prepared analysis and staff reports for the City of Edgewood's 2019 amendments to its Comprehensive Plan. The amendments to the City's Comprehensive Plan included revisions to the future land use map and the tables reflecting by the reclassification of lands along Meridian Avenue and the City's boundary with Fife. The proposed amendments include two citizen-initiated requests for site-specific changes to the Comprehensive Plan map and zoning map. The first was the reclassification of approximately 68.5 acres of property from Single-Family to Industrial use and the second involved reclassifying approximately 5.2 acres from Single-Family to Town Center. It was important to the Edgewood City Council and the Growth Management Division of the Washington State Department of Commerce that the analysis demonstrated that the amendments, when taken together, did not diminish the number of dwelling units that were planned within the City. AHBL staff prepared the amendments to the Comprehensive Plan, prepared Staff Reports that were transmitted to the City of Edgewood and the Department of Commerce, performed non-project SEPA environmental review of the amendments, and presented the amendments to the Edgewood City Council during the adoption phase. The amendments were adopted in June 2019.

HOUSING GRANT

CITY OF ORTING, WA

AHBL staff prepared the grant application, code amendments and Department of Commerce deliverables for a HB 1923 housing grant for the City of Orting. The amendments to the City's Municipal Code included authorizing duplexes on each parcel in one zoning district that permits single-family homes; authorizing lot size averaging; authorizing ADUs as outlined in the grant; authorizing a duplex on each corner lot within all zoning districts that permit single-family residences; allowing for the division or redivision of land into the nine lots through the short subdivision process. It was important to the City of Orting and the Washington State Department of Commerce that the process included multiple opportunities for public involvement throughout the process. AHBL presented the proposed amendments to the public at multiple virtual open houses in 2020. The amendments facilitated increased housing opportunities in the City by modifying regulations while maintaining the City's strong design theme and neighborhood character. AHBL prepared all the materials associated with the amendments including staff reports and the ordinance, performed non-project SEPA environmental review of the amendments, and presented the amendments to the Orting Planning Commission and Orting City Council. The amendments were adopted in March 2021.

SECTION 3: REFERENCES

AHBL takes great pride in the high level of service the firm provides to all of its clients. It is this reputation, and the long-standing relationships with these clients that are the cornerstone of the firm's success. AHBL encourages you to contact the individuals listed below. They will confirm the ability of the planning staff to maintain schedule and budget, and also attest to the firm's client-centered approach.

CITY OF CONNELL, WA
On-Call Planning
Comprehensive Plan Update
Parks, Recreation, and Open Space Plan Update
Critical Areas Ordinance Update

Cathleen Koch
City Administrator
P: 509.234.2701
E: ckoch@connellwa.org

FRANKLIN COUNTY, WA
On-Call Planning
Comprehensive Plan Update

Derrick Braaten
Planning and Building Director
P: 509.545.3521
E:dbraaten@co.franklin.wa.us

CITY OF WEST RICHLAND, WA
On-Call Planning
Comprehensive Plan Update
Shoreline Master Program Update

Roscoe Slade
Public Works Director
P: 509.967.5902
E: roscoe@westrichland.org

CITY OF EDGEWOOD, WA
On-Call Planning

Darren Groth, AICP, CPM
Community and Economic Development Director
P: 253.952.3299
E: darren@cityofedgewood.org

FEATURED CLIENT TESTIMONIALS:

"AHBL was highly recommended to us by Franklin County who was utilizing them for the County's Comp Update.

The help that AHBL has given us is invaluable, city staff would never have been able to do as thorough job with planning and land use issues without their help. This is evident in the projects that we managed prior to contracting with AHBL. Reports are submitted timely, concisely and accurately to the City Council and City staff. Projects are managed and completed in a timely manner and always to the City's satisfaction and exceed expectations.

Nicole Stickney, along with the rest of their staff, is always available when needed and pleasant to work with. AHBL staff go out of their way to make my staff's job easier.

The City of Connell continues to have an excellent relationship with AHBL and would highly recommend them to anyone who is looking for an engineering/planning firm."

Maria Peña
Former City Administrator - City of Connell

"AHBL has fulfilled our on-call planning needs for more than two years and provides high quality results each time we call. They've provided full-time, on-site assistance; on-demand project reviews; data collection and analysis; and long-term case management.

Whatever planning needs we have, I know I can trust Wayne Carlson and his team to deliver. Wayne is personally invested in the success of our organization and routinely contacts me to ensure we are continuously satisfied with their level of service."

Darren Groth, AICP, CPM
Community & Economic Development Director - City of Edgewood



Wayne Carlson, FAICP, LEED AP

Principal-in-Charge

Education

Master of City and Regional Planning with Distinction, The Ohio State University, 1994

B.A., Political Science, California State University - Fullerton, Cum Laude, 1991

Registrations

LEED Accredited Professional, U.S. Green Building Council, 2004

Fellow - American Institute of Certified Planners (FAICP), 2018

Appointments

Low Impact Development Implementation Advisory Committee, Washington State Department of Ecology

Over a career spanning 25 years, Wayne has worked in both the public and private sectors and has experience with every major facet of planning, including comprehensive planning, public outreach, design standards, feasibility studies, ESA gap analysis, permit processing, development codes, development review, and environmental review. Additionally, he has managed a variety of shoreline master programs, critical areas regulation updates, and code updates for cities, counties, and state agencies throughout Washington. He is a recognized expert in green infrastructure planning and served on the State's Low Impact Development Implementation Advisory Committee. Wayne has served as Principal and Project manager for several on-call planning contracts, and brings unique insight into acting on behalf of a municipality as an extension of staff.

His career includes facilitating numerous public involvement events, workshops, and public open houses; presenting to local planning commissions, city councils, boards and commissions, in addition to working with small stakeholder groups and technical working groups.

Wayne has assisted more than 80 cities and counties in the western United States to update various chapters within their local zoning codes. This has included facilitating numerous public involvement events, workshops, and public open houses; presenting to local planning commissions, city councils, boards and commissions, in addition to working with small Stakeholder groups and technical working groups.

Relevant Project Experience:

- City of West Richland Comprehensive Plan Update
- City of West Richland Shoreline Master Program Update
- City of Othello Critical Areas Ordinances Update
- City of Milton Comprehensive Plan Update & Annual Amendments
- City of Port Townsend Subarea Plan
- City of Newcastle Low Impact Development Code Update
- City of Lake Stevens Center Subarea Plan & Planned Action EIS
- City of Lake Stevens 20th Ave Subarea Plan & Planned Action EIS
- City of Covington Downtown Plan & Code Update
- City of Federal Way, 2019 Parks, Recreation, and Open Space Plan
- Port Gamble S'Klallam Tribe Master Plans



Nicole Stickney, AICP

Senior Project Manager

Nicole Stickney is a Planning Project Manager who has worked on a range of planning projects for private and public-sector clients throughout Washington. She brings specialized experience with policy development, code writing, environmental analysis, and development review. She also has exceptional skills in group facilitation and engagement, public presentations, and in moving high-profile projects forward. Her experience includes assisting the City of West Richland to successfully extend their urban growth area boundary and to annex property despite having an oversized UGA per GMA standards. Additionally, Nicole is experienced in providing planning training and has taught Washington State Department of Commerce's Short Course on Local Planning throughout the greater Tri-Cities area. Nicole offers a demonstrated history of working within the context of the State of Washington GMA.

Prior to joining AHBL, Nicole worked as a land use planner and economic development manager with the City of West Richland, as a land use planner for Cochise County, Arizona, and as the Economic Development Director for a small college town in northern New York.

Education

Master of Science, Transportation Systems & Planning, University of Washington, 2002

B.A., Community & Environmental Planning, University of Washington, 2001

Certification

American Institute of Certified Planners (AICP), 2017

Relevant Project Experience:

- City of Carnation On-Call Planning Services
- City of Benton City On-Call Planning Services
- City of Benton City Shoreline Master Plan Updates
- City of Connell Comprehensive Plan Update
- City of West Richland Comprehensive Plan Update
- City of West Richland Shoreline Master Program Update
- City of Othello Critical Areas Ordinance Update
- Shoreline Master Program Updates for cities of: Westport, Montesano, Aberdeen, Cosmopolis, Hoquiam, and Ocean Shores



MillieAnne VanDevender, AICP, LEED AP

Senior Land Use Planner

MillieAnne has professional experience and education in architecture and urban planning, as well as leadership and project management. She thrives when working with clients to achieve success, and is highly skilled with public outreach and meeting facilitation. MillieAnne is adept at writing and applying codes and regulations; in her work with the City of Seattle she educated and guided applicants through complex permitting processes involving a high level of coordination. MillieAnne's detail oriented and thorough approach ensures project success and the achievement of optimal outcomes. She diligently works to maintain documentation creating a dynamic and reliable record of accepted decisions and key points of consensus during particularly complex projects with multiple stakeholders, contributing to project success and attaining valuable community "buy in."

Education

Masters in Urban and Environmental Planning, University of Virginia, 2005

B.S., Architecture, University of Virginia, 1998

Certification

LEED Accredited Professional, U.S. Green Building Council, 2009

American Institute of Certified Planners (AICP)

Relevant Project Experience:

- City of Carnation On-Call Planning Services
- Franklin County Comprehensive Plan Update
- City of Connell Comprehensive Plan Update
- City of Connell Parks, Recreation, and Open Space Plan
- City of Federal Way 2019 Parks, Recreation, and Open Space Plan



Emily Weimer, AICP

Land Use Planner

Emily Weimer brings over seven years of experience in the public and private sector providing land use planning for assessment of land division, grading, shoreline, and critical areas analysis to municipalities. She has experience in a wide variety of planning aspects, from amending municipal codes and comprehensive plans to permit processing, transportation planning, long-range planning, and public outreach. Emily has lived in both sides of Washington state, having lived in the Tri-Cities for six years and in Carnation for more than a year. As a certified planner, Emily provides a robust skill set including ArcGIS and document preparation (using the Adobe Creative Suite).

Education

Master of Urban Planning, University of Illinois, 2016

B.S., Environmental Studies, Knox College, 2013

Certification

American Institute of Certified Planners (AICP)

Relevant Project Experience:

- City of Richland On-Call Code Revisions
- City of Benton City On-Call Planning Services
- City of Connell On-Call Planning Services
- Benton-Franklin Council of Governments Transition 2040 Metropolitan Regional Long-Range Transportation Plan*

**denotes individual experience*



Alex Campbell, AICP

Land Use Planner

Alex Campbell is a planning project manager who has worked on a range of planning, development, and parks projects for private and public-sector clients throughout Washington. He brings specialized experience with development review, planning policy development/implementation, code writing/interpretation, environmental review, and parks/open space planning. Alex's project experience includes leading public outreach/engagement, public presentations/workshops, and briefings to elected officials. Alex offers demonstrated expertise of working within the context of Washington's Growth Management Act (GMA). Alex's extensive current planning and development review experience is highlighted by his role as the City of Black Diamond's reviewing planner for the Ten Trails and Lawson Hills Master Planned Developments, two of the largest MPDs in the state.

Education

Master of City and Regional Planning, The Ohio State University, 2014

B.S., City and Regional Planning, The Ohio State, 2012

Certification

American Institute of Certified Planners (AICP)

Relevant Project Experience:

- Black Diamond On-call Planning Services
- DuPont On-call Planning Services
- West Richland Comprehensive Plan Update
- Lewis County Shoreline Master Program Update
- Spokane Parks Resource Management Plan
- SMP Cumulative Impact Analysis for cities of Aberdeen, Cosmopolis, Hoquiam, and Montesano
- SMP GIS Mapping and Data Analyses for the City of Aberdeen, Cosmopolis, Hoquiam, and Montesano

Scope of Work	Description	Budget
Task 1. Public Engagement	This may include a mixture of online and in-person activities such as open houses, virtual open houses, informational booths at community events, workshops, and other meetings. This task also includes the preparation of official and unofficial notices such as graphics for the city's website, fliers, and other materials to inform the public about events and opportunities.	**$13.900**
Task 2. Plan Update	Review and suggest changes or modifications to the Comprehensive Plan (last updated in 2015 and modified three times since by Ordinance) general text regarding existing conditions, figures and facts, and goals and policies as requested by staff. We understand that staff will also be responsible for making some of these changes but some of the work will be assigned to the consultant according to the city's needs. We also understand that this will not include any updates to the Shoreline Element, the Housing Element, the Transportation Element Background Information and 2021 TIP (which was adopted in 2021), or the School District CFP.	**$15,500**
Task 3. Public Meetings	Attend public meetings with Planning Board and City Council. This task involves up to four public meetings. AHBL will present and/or be available for technical questions. We assume eight hours of budget timed per meeting to include coordination, preparation, and meeting participation.	**$4,800**
Expenses	Expenses incurred during the course of the project.	**$800**
TOTAL BUDGET		**$35,000**

Principal	225.00/Hour
Associate Principal	200.00/Hour
Senior Project Manager	185.00/Hour
Project Manager	170.00/Hour
Senior Planning Project Manager	160.00/Hour
Planning Project Manager	150.00/Hour
Survey Project Manager	160.00/Hour
Assistant Project Manager	125.00/Hour
Senior Engineer	160.00/Hour
Project Engineer 4	140.00/Hour
Project Engineer 3	130.00/Hour
Project Engineer 2	120.00/Hour
Project Engineer 1	105.00/Hour
Senior Engineer Technician	130.00/Hour
Engineer Technician 3	120.00/Hour
Engineer Technician 2	105.00/Hour
Engineer Technician 1	90.00/Hour
Project Administrator	100.00/Hour
Project Expeditor	80.00/Hour
Planner 5	145.00/Hour
Planner 4	130.00/Hour
Planner 3	115.00/Hour
Planner 2	100.00/Hour
Planner 1	75.00/Hour
Planning Technician	50.00/Hour

Director of Landscape Architecture	170.00/Hour
Senior Landscape Architect	145.00/Hour
Landscape Architect 2	130.00/Hour
Landscape Architect 1	120.00/Hour
Senior Landscape Designer	120.00/Hour
Landscape Designer 3	110.00/Hour
Landscape Designer 2	100.00/Hour
Landscape Designer 1	90.00/Hour
Senior Landscape Technician	130.00/Hour
Landscape Technician 3	105.00/Hour
Landscape Technician 2	90.00/Hour
Landscape Technician 1	80.00/Hour
Senior Survey Technician	130.00/Hour
Survey Technician 3	120.00/Hour
Survey Technician 2	105.00/Hour
Survey Technician 1	90.00/Hour
Survey Crew	200.00/Hour
1-Person Survey Crew	130.00/Hour
Graphic Designer	110.00/Hour
Technical Editor	105.00/Hour
Word Processor/Sr. Administrative Asst.	85.00/Hour
Administrative Assistant	75.00/Hour
Outside Consultants	Separate Fee Proposal
Geotechnical Engineers	Separate Fee Proposal
Environmental Consultants	Separate Fee Proposal

Large Format Bond	0.50/sf
Large Format High Density Color Bond	2.00/sf
Large Format Mylar	2.00/sf
Small Format Color Bond 11 X 17	0.50/Sheet
Small Format Color Bond 8.5 X 11	0.40/Sheet

The Schedule of Charges and Compensation is subject to change.

Charges are made for technical typing, as in the preparation of reports, and for technical clerical services directly related to projects. Direct charges are not made for general secretarial services, office management, accounting, or maintenance.

10. AGENDA BILLS

(D) AB22-27

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DECLARING THE CITY'S INTENT TO ACQUIRE THE VACANT COMMERCIAL PROPERTY LOCATED AT THE INTERSECTION OF TOLT AVENUE/SR 203 AND E. BIRD STREET FOR PUBLIC PURPOSES.	**Agenda Bill No.:**	**AB22-27**
	Type of Action:	**MOTION**
	Origin: *(Council/Manager)*	City Manager
	Agenda Bill Author:	City Manager
EXHIBITS: Resolution: _____	**Date Submitted:**	
	For Agenda of:	
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

The City Council hereby declares its intent to acquire the vacant commercial property located at the intersection of Tolt Avenue/SR 203 and E. Bird Street, comprised of approximately 7,232 square feet, and identified as King County Assessor's Parcel No. 865830-2030, for public purposes.

RECOMMENDED ACTION: I motion to accept the resolution declaring the City's intent to acquire the vacant commercial property identified as APN 865830-2030 for public purposes.

AMENDED MOTION:

ACTION TAKEN

MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

JZL
4/13/22
4/15/22

RESOLUTION NO. ___

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DECLARING THE CITY'S INTENT TO ACQUIRE THE VACANT COMMERCIAL PROPERTY LOCATED AT THE INTERSECTION OF TOLT AVENUE/SR 203 AND E. BIRD STREET FOR PUBLIC PURPOSES.

WHEREAS, the City of Carnation has historically recognized Bird Street as a central public space connecting City Hall, the Carnation Farmers Market, Fred Hockert Park, the downtown business community, and various local nonprofit and/or social service organizations including without limitation the Sno-Valley Senior Center, Hopelink and the American Legion; and

WHEREAS, through an extensive public process involving numerous meetings of the City Council and other City advisory boards and commissions, the designation, enhancement and redevelopment of the Bird Street corridor for the above-referenced public and community service uses, to be known as the "Tolt Commons", has been identified as a top priority community visioning objective of the City; and

WHEREAS, on February 1, 2022, the City Council formally selected the City-owned property located at 4620 Tolt Avenue as the location for the City's new Emergency Operations Center and municipal services hub. The City intends to complete the design of the new Emergency Operations Center and municipal services hub, advertise for contractor bids, and commence construction of said facility in 2022-23; and

WHEREAS, separately, the City is nearing physical completion of its multi-million

dollar, multiyear Tolt Ave/SR 203 improvement project in partnership with the Washington State Department of Transportation, which project involves substantial streetscape enhancements to the downtown Tolt Avenue/SR 203 corridor in close proximity to the Tolt Commons area; and

WHEREAS, the vacant commercial property at the intersection of Tolt Avenue/SR 203 and E. Bird Street, comprised of approximately 7,232 square feet and identified as King County Assessor's Parcel No. 865830-2030, is located within the designated Tolt Commons area, immediately across E. Bird Street from the new Emergency Operations Center and municipal services hub site, and immediately adjacent to the Tolt Avenue/SR 203 corridor; and

WHEREAS, the City requires the above-referenced property for public purposes, specifically including as a public square, and potentially other uses, including without limitation as a public resting place, public open space, and public parking uses, in conjunction with and in support of the City's development of the Tolt Commons and the revitalization of and connection to the downtown business area following completion of the Tolt Avenue/SR 203 improvement project; and

WHEREAS, without limitation of the foregoing, the City wishes to use the above-referenced property in a manner that is consistent with the development of Tolt Commons; such vision includes but is not limited to development of a multi-use, environmentally sustainable space that promotes community and economic development through the provision of parking, summertime programed activities, and a place of gathering. In sum, the property shall be used to achieve a vision for Tolt Commons as a place to gather, play, park, shop and work;

NOW, THEREFORE, IT IS HEREBY RESOLVED BY THE CITY COUNCIL OF THE CITY OF CARNATION AS FOLLOWS:

Section 1. Findings. The City Council hereby adopts the above recitals as findings in

support this resolution.

Section 2. Declaration of Intent to Acquire Property. The City Council hereby declares its intent to acquire the vacant commercial property located at the intersection of Tolt Avenue/SR 203 and E. Bird Street, comprised of approximately 7,232 square feet and identified as King County Assessor's Parcel No. 865830-2030, for the public purposes and uses identified in this resolution. The provisions of this resolution are expressly without prejudice to and/or limitation of any further or different intent that may be expressed in any subsequent enactment of the City Council.

Section 3. Effective Date of Resolution. This resolution shall take effect and be in full force immediately upon its adoption by the City Council.

ADOPTED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE ___ DAY OF _____, 2022.

CITY OF CARNATION

_____
MAYOR, KIMBERLY LISK

ATTEST/AUTHENTICATED:

_____
CITY CLERK

RESOLUTION NO.: _____

10. AGENDA BILLS

(E) AB22-28

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: Motion approving Ordinance No. ____, an ordinance authorization condemnation of property (APN 865830-2030).	**Agenda Bill No.:**	**AB22-28**
	Type of Action:	**MOTION**
	Origin: *(Council/Manager)*	City Manager
	Agenda Bill Author:	City Manager
EXHIBITS: Ordinance No. _____.	**Date Submitted:**	
	For Agenda of:	
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

The City has identified the vacant commercial property at the intersection of Tolt Avenue/SR 203 and E. Bird Street, comprised of approximately 7,232 square feet and identified as King County Assessor's Parcel No. 865830-2030 as necessary to acquire for public purposes, specifically including as a public square, and potentially other uses, including without limitation as a public resting place, public open space, and public parking area, in conjunction with and in support of the City's development of the Tolt Commons and the revitalization of and connection to the downtown business area following completion of the Tolt Avenue/SR 203 improvement project. The subject property has been discussed as a potential acquisition site at numerous public meetings.

RECOMMENDED ACTION: Approval of the attached ordinance authorizing the acquisition of the subject property by condemnation, and authorizing the office of the City Attorney to commence and prosecute the legal proceedings as necessary to effectuate such acquisition.

AMENDED MOTION:

ACTION TAKEN

MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

JZL/
4/10/22
4/13/22
4/15/22

ORDINANCE NO. ___

AN ORDINANCE OF THE CITY OF CARNATION, WASHINGTON, PROVIDING FOR THE ACQUISITION, CONDEMNATION, APPROPRIATION, AND TAKING, IN FEE SIMPLE, OF CERTAIN REAL PROPERTY LOCATED AT THE INTERSECTION OF TOLT AVENUE/SR 203 AND E. BIRD STREET, AND FURTHER IDENTIFIED AS KING COUNTY ASSESSOR'S PARCEL NO. 865830-2030, PRIMARILY FOR USE AS A PUBLIC SQUARE, AND POTENTIALLY OTHER USES INCLUDING AS A PUBLIC RESTING PLACE, PUBLIC OPEN SPACE, AND PUBLIC PARKING AREA, IN CONJUNCTION WITH THE CITY'S CONSTRUCTION OF A NEW EMERGENCY OPERATIONS CENTER AND MUNICIPAL SERVICES HUB AS PART OF THE LARGER TOLT COMMONS DEVELOPMENT; DECLARING THE PUBLIC NECESSITY OF SUCH CONDEMNATION; PROVIDING THAT THE ENTIRE COST THEREOF SHALL BE PAID FROM AVAILABLE FUNDS OF THE CITY; AUTHORIZING THE OFFICE OF THE CITY ATTORNEY TO FILE AND PROSECUTE THE APPROPRIATE LEGAL PROCEEDINGS FOR SAID CONDEMNATION; SETTING FORTH LEGISLATIVE FINDINGS; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

WHEREAS, development of the Tolt Avenue/SR 203 and E. Bird Street area as a central hub for community service uses and public facilities, including without limitation the new Emergency Operations Center and Municipal Services Hub, is a priority objective for the City of Carnation; and

WHEREAS, in support of and in conjunction with such development, it is necessary for the City to acquire, by condemnation and for the public purposes set forth in this

ordinance, the vacant private property located at the corner of Tolt Avenue/SR 203 and E. Bird Street and identified as King County Assessor's Parcel No. 865830-2030; NOW, THEREFORE,

THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DO ORDAIN AS FOLLOWS:

Section 1. Findings. The City Council hereby adopts the above recitals, together with the content of the staff report/agenda bill dated _____, 2022, as findings in support of this ordinance. The City Council further enters the following additional findings:

A. The City of Carnation has historically recognized Bird Street as a central public space connecting City Hall, the Carnation Farmers Market, Fred Hockert Park, the downtown business community, and various local nonprofit and/or social service organizations including without limitation the Sno-Valley Senior Center, Hopelink and the American Legion.

B. Through an extensive public process involving numerous meetings of the City Council and other City advisory boards and commissions, the designation, enhancement and redevelopment of the Bird Street corridor for the above-referenced public and community service uses, to be known as the "Tolt Commons", has been identified as a top priority community visioning objective of the City.

C. On February 1, 2022, the City Council formally selected the City-owned property located at 4620 Tolt Avenue as the location for the new Emergency Operations Center and Municipal Services Hub. The City intends to complete the design of the new Emergency Operations Center and Municipal Services Hub, advertise for contractor bids, and commence construction of said facility in 2022-23.

D. Separately, the City is nearing physical completion of its multi-million dollar, multiyear Tolt Ave/SR 203 improvement project in partnership with the Washington State Department of Transportation, which project involves substantial streetscape enhancements to the downtown Tolt Avenue/SR 203 corridor in close proximity to the Tolt Commons area.

E. The vacant commercial property at the intersection of Tolt Avenue/SR 203 and E. Bird Street, comprised of approximately 7,232 square feet and identified as King County Assessor's Parcel No. 865830-2030, is located within the designated Tolt Commons area, immediately across E. Bird Street from the new Emergency Operations Center and Municipal Services Hub site, and immediately adjacent to the Tolt Avenue/SR 203 corridor.

F. The City requires the above-referenced property for public purposes, specifically as a public square, and potentially other purposes including without limitation as a public resting place, public open space, and a public parking area, in conjunction with and in support of the City's development of the Tolt Commons and the revitalization of and connection to the downtown business area following completion of the Tolt Avenue/SR 203 improvement project.

G. The City commissioned a professional appraisal of the above-referenced property and has attempted in good faith to acquire said property through negotiations with the landowner, but such negotiations have been unsuccessful.

H. The City is authorized by applicable state law, including without limitation RCW 8.12.030, RCW 35A.11.010 -.020, and RCW 35A.64.200, to condemn property for public purposes.

I. The public square, public resting space, public open space, and public parking uses for which the City desires to acquire the above-referenced property are public purposes for which the City is authorized to exercise its power of condemnation.

J. Because the City has been unsuccessful in its attempts to acquire the above-referenced property through negotiation with the landowner, it is necessary for the City to condemn said property in order to ensure that the Tolt Commons is developed in accordance with the City's community vision and to prevent development of the above-referenced property for private commercial uses that are inconstant with such vision. Such necessity is amplified by the landowner's continued attempts to market and sell the property for private commercial development.

K. The City has sufficient available funds from which to acquire the above-referenced property by condemnation.

L. Pursuant to RCW 8.25.290, the City published and mailed notice to the owner of the above-referenced property advising that the City Council would consider and potentially take final action authorizing the acquisition of such property by condemnation at the Council's April 19, 2022, regular meeting.

M. Any and all interested parties were afforded the opportunity to address the City Council at the April 19, 2022, meeting.

N. The City's acquisition of any right to real property is categorically exempt from review under the State Environmental Policy Act.

O. This ordinance has been processed, considered and adopted in material compliance with all applicable procedural requirements.

P. Acquisition of the above-referenced property by condemnation as authorized by this ordinance is consistent with and will implement the City's community planning vision, and will further advance the public health, safety and welfare.

Section 2. Public Use and Purpose—Authority to Condemn. The Carnation City Council hereby declares that the public health, safety, and welfare demand that the City acquire in fee interest the real property located at the intersection of Tolt Avenue/SR 203 and E. Bird Street, identified as King County Assessor's Parcel No. 865830-2030, and legally described in Exhibit A, attached hereto and incorporated herein by this reference as if set forth in full. Condemnation of said property is required in order to serve a public use and purpose—namely, development and use as a public square, but also potentially other public uses including without limitation as a public resting space, public open space, and a public parking area, as necessary to support and complement the public uses within the Tolt Commons area and the revitalization of and connection to the downtown business area following completion of the Tolt Avenue/SR 203 improvement project. The City is authorized to exercise its power of condemnation to acquire said property for such purposes.

Section 3. Declaration of Necessity. The City Council hereby finds and declares that the property identified in Section 2 is necessary for the public purposes and public uses identified therein. The City Council further finds and declares that further attempts at acquiring said property by negotiation would be unsuccessful, and that it is necessary to acquire said property through condemnation.

Section 4. Condemnation. The property identified in Section 2 is hereby condemned, appropriated, taken, and damaged, in fee simple, for the public purposes described

herein. Condemnation of said property is subject to the making or payment of just compensation to the owner(s) and possessor(s) of the property, as applicable, in the manner prescribed by law.

Section 5. Authority of City Attorney. The office of the City Attorney is hereby authorized to commence and prosecute the proceedings prescribed by law necessary to condemn, acquire, take and appropriate the property identified in Section 2 as necessary to effectuate the provisions of this ordinance.

Section 6. Source of Funds. The entire cost of the property acquisition authorized by this ordinance, including all costs and expenses of any condemnation proceedings, shall be paid from such available funds as may be appropriate under the circumstances.

Section 7. Severability. If any section, sentence, clause or phrase of this ordinance should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity or constitutionality of any other section, sentence, clause or phrase of this ordinance.

Section 8. Effective Date. This ordinance or a summary thereof consisting of the title shall be published in the official newspaper of the City, and shall take effect and be in full force five (5) days after publication

APPROVED by the Carnation City Council this ____ day of _____, 2022.

_____
MAYOR, KIM LISK

ATTEST/AUTHENTICATED:

_____
ACTING CITY CLERK, ANA CORTEZ

APPROVED AS TO FORM:
OFFICE OF THE CITY ATTORNEY:

BY _____
J. ZACHARY LELL

FILED WITH THE CITY CLERK: ....._____
PASSED BY THE CITY COUNCIL: ....._____
PUBLISHED: ....._____
EFFECTIVE DATE:....._____
ORDINANCE NO. .....___

SUMMARY OF ORDINANCE NO. _____

of the City of Carnation, Washington

On the ____ day of _____, 2022, the City Council of the City of Carnation, passed Ordinance No. _____. A summary of the content of said ordinance, consisting of the title, provides as follows:

AN ORDINANCE OF THE CITY OF CARNATION, WASHINGTON, PROVIDING FOR THE ACQUISITION, CONDEMNATION, APPROPRIATION, AND TAKING, IN FEE SIMPLE, OF CERTAIN REAL PROPERTY LOCATED AT THE INTERSECTION OF TOLT AVENUE/SR 203 AND E. BIRD STREET, AND FURTHER IDENTIFIED AS KING COUNTY ASSESSOR'S PARCEL NO. 865830-2030, PRIMARILY FOR USE AS A PUBLIC SQUARE, AND POTENTIALLY OTHER USES INCLUDING AS A PUBLIC RESTING PLACE, PUBLIC OPEN SPACE, AND PUBLIC PARKING AREA, IN CONJUNCTION WITH THE CITY'S CONSTRUCTION OF A NEW EMERGENCY OPERATIONS CENTER AND MUNICIPAL SERVICES HUB AS PART OF THE LARGER TOLT COMMONS DEVELOPMENT; DECLARING THE PUBLIC NECESSITY OF SUCH CONDEMNATION; PROVIDING THAT THE ENTIRE COST THEREOF SHALL BE PAID FROM AVAILABLE FUNDS OF THE CITY; AUTHORIZING THE OFFICE OF THE CITY ATTORNEY TO FILE AND PROSECUTE THE APPROPRIATE LEGAL PROCEEDINGS FOR SAID CONDEMNATION; SETTING FORTH LEGISLATIVE FINDINGS; PROVIDING FOR SEVERABILITY; AND ESTABLISHING AN EFFECTIVE DATE.

The full text of this Ordinance will be mailed upon request.

DATED this _____ day of _____, 2022.

_____

ACTING CITY CLERK, ANA CORTEZ

Exhibit A

LOTS 9, 10, AND 11, BLOCK 15, TOLT TOWNSITE, COS PLAT OF TOLT